Welcome to UMH



UNITED METHODIST HOMES

Employee Handbook

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About This Handbook

This handbook outlines some of the basic policies, practices and procedures at United Methodist Homes. It is presented as a matter of information only to give you guidance about working here.

This handbook is not intended to be, and does not create, a contract of employment between United Methodist Homes and any employee. United Methodist Homes strives to implement effective policies and procedures. It is our hope that you will find your position here rewarding and will enjoy a successful career with us. However, employment with United Methodist Homes is at-will, which means that you can end your employment at any time for any reason and United Methodist Homes can end the relationship at any time and without advance notice. We hope that by establishing clear and consistent standards for job performance and an open environment for the discussion of concerns, you will enjoy a successful and fulfilling career with United Methodist Homes.

We review our policies, procedures and benefits periodically and may make revisions based on the need for and desirability of change at any time and without notice as situations warrant. If possible, we will notify you of such changes before they occur; however, employees are responsible for keeping up-to-date with all policies. However, United Methodist Homes reserves the right and has complete discretion to modify, revoke, suspend, terminate or change any policy, rule or practice at any time, to the extent allowed by applicable law, in whole or in part, at any time. The contents of the handbook are guidelines only and United Methodist Homes and the benefit plan administrators shall have the maximum discretion permitted by law to administer, interpret, modify, discontinue or enhance any policy, program, rule, benefit or plan.

This handbook supersedes all previous versions of the employee handbook.

Effective June 2021

A. Introduction

1. Welcome Message

Dear Colleague,

I would like to welcome you as an employee of United Methodist Homes. We offer many options for senior living, ranging from independent housing, to adult care, to assisted living, to skilled nursing. United Methodist Homes is a not-for-profit, church-related organization with a mission of providing quality care and services to the aging. The Board of Directors, which governs our organization, holds all of us to high standards. The management team strives to treat its employees fairly and with respect, and we expect you to treat our residents and your fellow employees with respect in return.

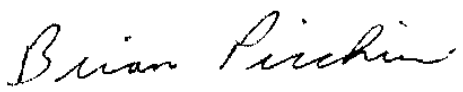
Your job at United Methodist Homes is important and will add to the overall quality of care and quality of life of our residents. We are pleased that you have chosen to work at United Methodist Homes and wish you a successful career with us.

As a new employee to our organization, there are a number of things you will need to know. This handbook will provide you with information about the policies, procedures and rules that apply to our organization.

This handbook will provide answers to most of your questions. If you have additional questions, please contact a member of your Human Resources Department.

On behalf of United Methodist Homes' Board of Directors, the Management Team and your fellow co-workers, I welcome you to United Methodist Homes.

Sincerely,



Brian J. Picchini

President and Chief Executive Officer

2. THE PLEDGE OF UNITED METHODIST HOMES

United Methodist Homes' Board of Directors has adopted a Code of Employee Relations in order to provide employees with positive opportunity for self-development and to assure residents of quality service.

Accordingly, United Methodist Homes pledges:

TO PROVIDE JOB SATISFACTION *by planning jobs so that each person has a fair day's work with as much continuity and job security as possible;*

TO EMPLOY QUALIFIED PEOPLE *by providing equal opportunity for all employees and qualified applicants without regard to any factor or classification as provided by applicable law including race, color, creed, religion, sexual identity, age, sexual orientation, national origin, ancestry, marital status, disability, genetic information, military/veteran status, domestic violence victim status, familial status or any other protected characteristic under federal, state or local law. Accordingly, all employment decisions and personnel actions or programs such as hiring, promotion, discipline, compensation and benefits are made in compliance with applicable rules and principles of equal employment opportunity law and regulations.*

TO TELL THE EMPLOYEES ITS POLICIES *by stating in written policies the rights, benefits and privileges employees may expect, and by distributing this information to all employees;*

TO ASSURE EMPLOYEES OF EQUAL TREATMENT *by requiring all members of management through understanding supervision to apply policies fairly in all facilities operated by United Methodist Homes;*

TO PROVIDE BENEFITS *by offering a program of its benefits to add to the security of the employee and his or her family, and to broaden the opportunity for personal development;*

TO TELL EMPLOYEES WHAT IS EXPECTED OF THEM *by establishing the standards of work performance and behavior that are expected from employees, by informing them of these standards, by assisting them in attaining these standards, and by advising them about the quality of their performance through periodic appraisals;*

TO KEEP EMPLOYEES INFORMED *by telling employees about management actions that affect their work assignments, duties or other interests as employees and explaining such actions;*

TO SEEK AND CONSIDER SUGGESTIONS *by encouraging employees to make comments and give suggestions about their work or other matters which affect them or United Methodist Homes programs;*

TO HAVE A PERSONNEL RELATIONS PROCEDURE *by permitting and encouraging employees who believe that they have been unfairly treated to present their complaints to supervisors without fear of reprisal.*

3. Mission

United Methodist Homes' communities provide a wide range of senior living services with exceptional care and compassion.

4. Vision and Values

Vision

The vision of United Methodist Homes is to be the provider of choice in lifestyle options for seniors.

Values

We believe an effective model of health care delivery reflects these core values:

- Concern and understanding for the whole person.
- A focus on education and wellness in pursuit of a full life.
- Independence, dignity and a sense of control for all residents.
- Caring and compassion in our staff.

5. Code of Conduct

It is the policy of United Methodist Homes to conduct its business with exemplary integrity and ethical practice. United Methodist Homes strives to consistently and fully comply with all laws and regulations pertaining to the delivery and billing for services, which apply to United Methodist Homes on account of its residents or its participation in the Medicare, Medicaid and other government-funded programs. Additional information about corporate compliance and privacy requirements can be found in the Code of Conduct Manual.

United Methodist Homes maintains a Non-Retaliation, Non-Intimidation policy which can be found on the intranet. You may not be retaliated against because you made a good faith report through the hotline or to a supervisor, a manager or the compliance officer. Employees who lawfully report false claims are protected from retaliation and intimidation by our policy and federal and state laws. This means that United Methodist Homes will not discharge, demote, suspend, threaten, harass or discriminate against you in the terms and conditions of your employment with United Methodist Homes because of lawful acts taken by you. However, if you are involved in the wrongdoing that you are reporting, then you may be subject to disciplinary action.

Please call 1-800-646-9066 to report any instance that you feel may be in violation of stated policy.

6. Purpose of the Handbook

This handbook was developed to help us work together by explaining the employment policies of United Methodist Homes. The success of our programs and your continued employment is based on all employees fully understanding these policies. United Methodist Homes operates in

various states and, as such, where state and local laws provide more generous protection and/or benefits to employees, the protection and/or benefits provided by such laws apply.

This handbook is intended solely to describe the present policies, working conditions, expectations and benefits of United Methodist Homes. The handbook does not purport to address every conceivable situation at work and is meant only as a guideline. Federal, State, and/or local laws will take precedence over United Methodist Homes' policies, where applicable. United Methodist Homes reserves the right to change, amend or withdraw any of the policies or benefits consistent with its legal obligations and it may make such change with or without notice.

B. EMPLOYMENT MATTERS

1. Human Resources Department

The Human Resources Department is available to assist you in matters concerning employment and benefits. Important records must be kept up to date in the Human Resources Office. It is important that the Human Resources Department has your current mailing address, phone number, and other pertinent information for the purpose of maintaining up-to-date files. All Human Resources records are the private property of the facility where you are employed. You may examine your file during regular business hours, by appointment only. Such requests must be made in writing.

2. Equal Employment Opportunity

United Methodist Homes is committed to providing equal opportunity for all employees and qualified applicants without regard to any factor or classification as provided by applicable law including race, color, creed, religion, sexual identity, age, sexual orientation, national origin, ancestry, marital status, disability, genetic information, military/veteran status, domestic violence victim status, familial status or any other protected characteristic under federal, state or local law. Accordingly, all employment decisions and personnel actions or programs such as hiring, promotion, discipline, compensation and benefits are made in compliance with applicable rules and principles of equal employment opportunity law and regulations.

If you believe you have been treated in an unlawful or discriminatory manner, promptly report the incident or situation to your supervisor, the Human Resources staff person or the administrator. Any employee who engages in conduct in violation of this policy is subject to disciplinary action up to and including termination.

3. Anti-Harassment Policy

United Methodist Homes is committed to a work environment in which all individuals are treated with respect and dignity. Each individual has the right to work in a professional atmosphere that promotes equal employment opportunities and prohibits discriminatory practices, including harassment. We will not tolerate harassment of our employees in any form and we require that all employees refrain from offensive or inappropriate harassing or behavior in the workplace. Likewise, harassment on the basis of any other prohibited or unlawful classification such as

race, color, creed, religion, sexual identity, age, sexual orientation, national origin, ancestry, marital status, disability, genetic information, military/veteran status, domestic violence victim status, familial status or any other protected characteristic under federal, state, or local law, will not be tolerated. (See additional information in Sexual Harassment Policy) United Methodist Homes expects that all relationships among persons in the workplace will be business-like and free of bias, prejudice and harassment. Any employee violating this policy will be held responsible for any offending conduct and subjected to disciplinary action. Harassment of non-employees providing services on United Methodist Homes' premises by our employees is also prohibited.

Examples of harassment include verbal (including improper joking or teasing) or physical conduct that denigrates or shows hostility or aversion towards an individual because of any protected characteristic, and that: (1) has the purpose or effect of creating an intimidating, hostile or offensive working environment as defined by law; or (2) has the purpose or effect of unreasonably interfering with an individual's work performance; or (3) otherwise adversely affects an individual's employment opportunities or creates a risk to the health and/or safety of an employee.

United Methodist Homes specifically prohibits the following conduct:

- Any verbal or physical conduct that has the purpose or effect of subjecting an individual to inferior terms, conditions or privileges of employment, or substantially interfering with an employee's ability to do his or her job, or creates an intimidating, hostile or offensive work environment;
- Offensive or inappropriate communication whether by e-mail, letter, telephone calls, etc.;
- Offensive jokes, obscene remarks and gestures including those of a sexual nature (see additional information under sexual harassment policy).
- Displaying offensive or sexually suggestive objects, books, magazines, cartoons, pictures, calendars or literature;
- Making remarks about a person's sexual identity, age, national origin, race, color, sexual orientation, disability, creed, religion, military/veteran status or other protected classification;
- Repeated, unreasonable actions of individuals (or a group) directed towards an employee (or a group of employees), which are intended to intimidate, degrade, humiliate, or undermine; or which create a risk to the health or safety of the employee(s).

Any such offending conduct may result in disciplinary action up to and including termination.

If you are or have been subjected to any form of harassment or have any complaint regarding harassment by anyone at work or you are aware of any such conduct by anyone including supervisors, co-employees, visitors or residents, it is imperative that you report such conduct to your department director, the Human Resources Director, the administrator or any other

manager with whom you feel comfortable so that he/she may investigate and resolve the problem.

All complaints will be promptly investigated as expeditiously and professionally as possible. Where investigations confirm allegations, appropriate action will be taken. Every effort will be made to maintain the confidentiality of information throughout the complaint and investigation process, consistent with the need to conduct a thorough investigation.

United Methodist Homes has a Non-Retaliation, Non-Intimidation policy in regard to any reports of harassment that are made in good faith. All employees are required to report any perceived violation of this policy or inappropriate conduct according to this policy.

4. Sexual Harassment Policy

United Methodist Homes is committed to maintaining a workplace free from sexual harassment. Sexual harassment is a form of workplace discrimination. All employees are required to work in a manner that prevents sexual harassment in the workplace. This Policy is one component of United Methodist Homes' commitment to a discrimination-free work environment. Sexual harassment is against the law and all employees have a legal right to a workplace free from sexual harassment and employees are urged to report sexual harassment by filing a complaint internally with United Methodist Homes. Employees can also file a complaint with a government agency or in court under federal, state or local antidiscrimination laws.

Policy:

1. United Methodist Homes' policy applies to all employees, applicants for employment, interns, whether paid or unpaid, contractors and persons conducting business, regardless of immigration status, with United Methodist Homes. In the remainder of this document, the term "employees" refers to this collective group.
2. Sexual harassment will not be tolerated. Any employee or individual covered by this policy who engages in sexual harassment or retaliation will be subject to remedial and/or disciplinary action (e.g., counseling, suspension, termination).
3. Retaliation Prohibition: No person covered by this Policy shall be subject to adverse action because the employee reports an incident of sexual harassment, provides information, or otherwise assists in any investigation of a sexual harassment complaint. United Methodist Homes will not tolerate such retaliation against anyone who, in good faith, reports or provides information about suspected sexual harassment. Any employee of United Methodist Homes who retaliates against anyone involved in a sexual harassment investigation will be subjected to disciplinary action, up to and including termination. All employees, paid or unpaid interns, or non-employees working in the workplace who believe

they have been subject to such retaliation should inform your department director, the Human Resources Director, the administrator or any other manager with whom you feel comfortable. All employees, paid or unpaid interns or non-employees who believe they have been a target of such retaliation may also seek relief in other available forums, as explained below in the section on Legal Protections.

4. Sexual harassment is offensive, is a violation of our policies, is unlawful, and may subject United Methodist Homes to liability for harm to targets of sexual harassment. Harassers may also be individually subject to liability. Employees of every level who engage in sexual harassment, including managers and supervisors who engage in sexual harassment or who allow such behavior to continue, will be penalized for such misconduct.
5. United Methodist Homes will conduct a prompt and thorough investigation that ensures due process for all parties, whenever management receives a complaint about sexual harassment, or otherwise knows of possible sexual harassment occurring. United Methodist Homes will keep the investigation confidential to the extent possible. Effective corrective action will be taken whenever sexual harassment is found to have occurred. All employees, including managers and supervisors, are required to cooperate with any internal investigation of sexual harassment.
6. All employees are encouraged to report any harassment or behaviors that violate this policy. United Methodist Homes will provide all employees a complaint form for employees to report harassment and file complaints.
7. Managers and supervisors are **required** to report any complaint that they receive, or any harassment that they observe or become aware of, to your department director, the Human Resources Director, the administrator or any other manager with whom the employee feels comfortable.
8. This policy applies to all employees, paid or unpaid interns, and non-employees and all must follow and uphold this policy. This policy must be provided to all employees and should be posted prominently in all work locations to the extent practicable (for example, in a main office, not an offsite work location) and be provided to employees upon hiring.

What Is "Sexual Harassment"?

Sexual harassment is a form of sex discrimination and is unlawful under federal, state, and (where applicable) local law. Sexual harassment includes harassment on the basis of sex, sexual orientation, self-identified or perceived sex, gender expression, gender identity and the status of being transgender.

Sexual harassment includes unwelcome conduct which is either of a sexual nature, or which is directed at an individual because of that individual's sex when:

- Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment, even if the reporting individual is not the intended target of the sexual harassment;
- Such conduct is made either explicitly or implicitly a term or condition of employment; or
- Submission to or rejection of such conduct is used as the basis for employment decisions affecting an individual's employment.

A sexually harassing hostile work environment includes, but is not limited to, words, signs, jokes, pranks, intimidation or physical violence which are of a sexual nature, or which are directed at an individual because of that individual's sex. Sexual harassment also consists of any unwanted verbal or physical advances, sexually explicit derogatory statements or sexually discriminatory remarks made by someone which are offensive or objectionable to the recipient, which cause the recipient discomfort or humiliation, which interfere with the recipient's job performance.

Sexual harassment also occurs when a person in authority tries to trade job benefits for sexual favors. This can include hiring, promotion, continued employment or any other terms, conditions or privileges of employment. This is also called "quid pro quo" harassment.

Any employee who feels harassed should report so that any violation of this policy can be corrected promptly. Any harassing conduct, even a single incident, can be addressed under this policy.

Examples of sexual harassment

The following describes some of the types of acts that may be unlawful sexual harassment and that are strictly prohibited:

- Physical acts of a sexual nature, such as:
    - Touching, pinching, patting, kissing, hugging, grabbing, brushing against another employee's body or poking another employee's body;
    - Rape, sexual battery, molestation or attempts to commit these assaults.
- Unwanted sexual advances or propositions, such as:

    - Requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion or other job benefits or detriments;
    - Subtle or obvious pressure for unwelcome sexual activities.
- Sexually oriented gestures, noises, remarks or jokes, or comments about a person's sexuality or sexual experience, which create a hostile work environment.
- Sex stereotyping occurs when conduct or personality traits are considered inappropriate simply because they may not conform to other people's ideas or perceptions about how individuals of a particular sex should act or look.
- Sexual or discriminatory displays or publications anywhere in the workplace, such as:
    - Displaying pictures, posters, calendars, graffiti, objects, promotional material, reading materials or other materials that are sexually demeaning or pornographic. This includes such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.
- Hostile actions taken against an individual because of that individual's sex, sexual orientation, gender identity and the status of being transgender, such as:
    - Interfering with, destroying or damaging a person's workstation, tools or equipment, or otherwise interfering with the individual's ability to perform the job;
    - Sabotaging an individual's work;
    - Bullying, yelling, name-calling.

Who can be a target of sexual harassment?

Sexual harassment can occur between any individuals, regardless of their sex or gender. The Law protects employees, paid or unpaid interns, and non-employees, including independent contractors, and those employed by companies contracting to provide services in the workplace. Harassers can be a superior, a subordinate, a coworker or anyone in the workplace including an independent contractor, contract worker, vendor, client, customer or visitor.

Where can sexual harassment occur?

Unlawful sexual harassment is not limited to the physical workplace itself. It can occur while employees are traveling for business or at employer sponsored events or parties. Calls, texts, emails, and social media usage by employees can constitute unlawful workplace harassment, even if they occur away from the workplace premises, on personal devices or during non-work hours.

Retaliation

Unlawful retaliation can be any action that could discourage a worker from coming forward to make or support a sexual harassment claim. Adverse action need not be job-related or occur in the workplace to constitute unlawful retaliation (e.g., threats of physical violence outside of work hours).

Such retaliation is unlawful under federal, state, and (where applicable) local law. The law protects any individual who has engaged in "protected activity." Protected activity occurs when a person has:

- made a complaint of sexual harassment, either internally or with any anti-discrimination agency;
- testified or assisted in a proceeding involving sexual harassment under the Human Rights Law or other anti-discrimination law;
- opposed sexual harassment by making a verbal or informal complaint to management, or by simply informing a supervisor or manager of harassment;
- reported that another employee has been sexually harassed; or
- encouraged a fellow employee to report harassment.

Even if the alleged harassment does not turn out to rise to the level of a violation of law, the individual is protected from retaliation if the person had a good faith belief that the practices were unlawful. However, the retaliation provision is not intended to protect persons making intentionally false charges of harassment.

Reporting Sexual Harassment

Preventing sexual harassment is everyone's responsibility. United Methodist Homes cannot prevent or remedy sexual harassment unless it knows about it. Any employee, paid or unpaid intern or non-employee who has been subjected to behavior that may constitute sexual harassment is encouraged to report such behavior to your department director, the Human Resources Director, the administrator or any other manager with whom you feel comfortable. Anyone who witnesses or becomes aware of potential instances of sexual harassment should report such behavior to your department director, the Human Resources Director, the administrator or any other manager with whom you feel comfortable.

Reports of sexual harassment may be made verbally or in writing. A form for submission of a written complaint is available from a supervisor, director, your hr. dept., or on the intranet and all employees are encouraged to use this complaint form. Employees who are reporting sexual harassment on behalf of other employees should use the complaint form and note that it is on another employee's behalf.

Employees, paid or unpaid interns or non-employees who believe they have been a target of sexual harassment may also seek assistance in other available forums, as explained below in the section on Legal Protections.

Supervisory Responsibilities

All supervisors and managers who receive a complaint or information about suspected sexual harassment, observe what may be sexually harassing behavior or for any reason suspect that sexual harassment is occurring, **are required** to report such suspected sexual harassment to your department director, the Human Resources Director, the administrator or any other manager with whom you feel comfortable.

In addition to being subject to discipline if they engaged in sexually harassing conduct themselves, supervisors and managers will be subject to discipline for failing to report suspected sexual harassment or otherwise knowingly allowing sexual harassment to continue.

Supervisors and managers will also be subject to discipline for engaging in any retaliation.

Complaint and Investigation of Sexual Harassment

All complaints or information about sexual harassment will be investigated, whether that information was reported in verbal or written form. Investigations will be conducted in a timely manner, and will be confidential to the extent possible.

An investigation of any complaint, information or knowledge of suspected sexual harassment will be prompt and thorough, commenced immediately and completed as soon as possible. The investigation will be kept confidential to the extent possible. All persons involved, including complainants, witnesses and alleged harassers will be accorded due process, as outlined below, to protect their rights to a fair and impartial investigation.

Any employee may be required to cooperate as needed in an investigation of suspected sexual harassment. United Methodist Homes will not tolerate retaliation against employees who file complaints, support another's complaint or participate in an investigation regarding a violation of this policy.

While the process may vary from case to case, investigations should be done in accordance with the following steps.

- Upon receipt of complaint, your department director, the Human Resources Director, the administrator or any other manager with whom you feel comfortable will conduct an immediate review of the allegations, and take any interim actions (e.g., instructing the respondent to refrain from communications with the complainant), as appropriate. If complaint is verbal, encourage the individual to complete the "Complaint Form" in writing. If he or she refuses, prepare a Complaint Form based on the verbal reporting.

- If documents, emails or phone records are relevant to the investigation, take steps to obtain and preserve them.
- Request and review all relevant documents, including all electronic communications.
- Interview all parties involved, including any relevant witnesses;
- Create a written documentation of the investigation (such as a letter, memo or email), which contains the following:
    - A list of all documents reviewed, along with a detailed summary of relevant documents;
    - A list of names of those interviewed, along with a detailed summary of their statements;
    - A timeline of events;
    - A summary of prior relevant incidents, reported or unreported; and
    - The basis for the decision and final resolution of the complaint, together with any corrective action(s).
- Keep the written documentation and associated documents in a secure and confidential location.
- Promptly notify the individual who reported and the individual(s) about whom the complaint was made of the final determination and implement any corrective actions identified in the written document.
- Inform the individual who reported of the right to file a complaint or charge externally as outlined in the next section.

Legal Protections and External Remedies

Sexual harassment is not only prohibited by United Methodist Homes but is also prohibited by state, federal, and, where applicable, local law.

Aside from the internal process at United Methodist Homes, employees may also choose to pursue legal remedies with the following governmental entities. While a private attorney is not required to file a complaint with a governmental agency, you may seek the legal advice of an attorney.

In addition to those outlined below, employees in certain industries may have additional legal protections.

State Human Rights Law (HRL) (NY State Locations)

The Human Rights Law (HRL), codified as N.Y. Executive Law, art. 15, § 290 et seq., applies to all employers in New York State with regard to sexual harassment, and protects employees, paid or unpaid interns and non-employees, regardless of immigration status. A complaint alleging violation of the Human Rights Law may be filed either with the Division of Human Rights (DHR) or in New York State Supreme Court.

Complaints with DHR may be filed any time **within one year** of the harassment. If an individual did not file at DHR, they can sue directly in state court under the HRL, **within three years** of the alleged sexual harassment. An individual may not file with DHR if they have already filed a HRL complaint in state court.

Complaining internally to United Methodist Homes does not extend your time to file with DHR or in court. The one year or three years is counted from date of the most recent incident of harassment.

You do not need an attorney to file a complaint with DHR, and there is no cost to file with DHR.

DHR will investigate your complaint and determine whether there is probable cause to believe that sexual harassment has occurred. Probable cause cases are forwarded to a public hearing before an administrative law judge. If sexual harassment is found after a hearing, DHR has the power to award relief, which varies but may include requiring your employer to take action to stop the harassment, or redress the damage caused, including paying of monetary damages, attorney's fees and civil fines.

DHR's main office contact information is: NYS Division of Human Rights, One Fordham Plaza, Fourth Floor, Bronx, New York 10458. You may call (718) 741-8400 or visit: www.dhr.ny.gov.

Contact DHR at (888) 392-3644 or visit dhr.ny.gov/complaint for more information about filing a complaint. The website has a complaint form that can be downloaded, filled out, notarized and mailed to DHR. The website also contains contact information for DHR's regional offices across New York State.

Pennsylvania Human Relations Commission (PA Locations)

Employee complaints can be filed on line at: www.phrc.pa.gov or contact the regional office at:

PA Human Relations Commission
Executive Offices
333 Market St., 8th Floor
Harrisburg, PA 17101-2210
(717) 787-4410

Civil Rights Act of 1964

The United States Equal Employment Opportunity Commission (EEOC) enforces federal anti-discrimination laws, including Title VII of the 1964 federal Civil Rights Act (codified as 42 U.S.C. § 2000e et seq.). An individual can file a complaint with the EEOC anytime

within 300 days from the harassment. There is no cost to file a complaint with the EEOC. The EEOC will investigate the complaint, and determine whether there is reasonable cause to believe that discrimination has occurred, at which point the EEOC will issue a Right to Sue letter permitting the individual to file a complaint in federal court.

The EEOC does not hold hearings or award relief, but may take other action including pursuing cases in federal court on behalf of complaining parties. Federal courts may award remedies if discrimination is found to have occurred. In general, private employers must have at least 15 employees to come within the jurisdiction of the EEOC.

An employee alleging discrimination at work can file a "Charge of Discrimination." The EEOC has district, area, and field offices where complaints can be filed. Contact the EEOC by calling 1-800-669-4000 (TTY: 1-800-669-6820), visiting their website at www.eeoc.gov or via email at info@eeoc.gov.

If an individual filed an administrative complaint with DHR, DHR will file the complaint with the EEOC to preserve the right to proceed in federal court.

Local Protections

Many localities enforce laws protecting individuals from sexual harassment and discrimination. An individual should contact the county, city or town in which they live to find out if such a law exists. For example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

5. Americans with Disabilities Act

Americans with Disabilities Act (ADA) and its amendments and state laws prohibit United Methodist Homes from discriminating against a qualified employee or applicant on the basis of disability or perceived disability in job application procedures, hiring, firing, advancement, compensation, fringe benefits, job training and other terms, conditions and privileges of employment. The ADA and state laws do not alter United Methodist Homes' right to hire the best-qualified applicant, but the law does prohibit discrimination against a qualified applicant or

employee because of his or her disability, or because of a perceived disability. As a matter of United Methodist Homes' policy, United Methodist Home prohibits discrimination of any kind against people with disabilities.

Reasonable Accommodation

United Methodist Homes will comply with its obligation to provide a reasonable accommodation to a qualified individual with a disability including employees and job applicants to enable individuals to perform the essential functions of their job, to apply for a job, or to enjoy the benefits and privileges of employment.

As an employee, if you are disabled and you wish such reasonable accommodation, contact the Human Resources Director. On receipt of your request, we will meet with you and may ask for information regarding the nature of your disability. We may ask for information regarding the nature of your disability and the nature of your limitations or take other steps necessary to help us determine viable options for reasonable accommodation. We will then work with you to determine whether your disability can be reasonably accommodated, and if it can be accommodated, we will explore alternatives with you and endeavor to implement a mutually agreeable accommodation. United Methodist Homes will afford reasonable accommodation to a qualified individual with a disability, provided that the accommodation does not cause undue hardship to United Methodist Homes, or irrespective of the accommodation, that such individual does not pose a direct threat to the health or safety of themselves or others.

Reasonable accommodation may take many forms and it will vary from one employee to another. United Methodist Homes does not have to provide the exact accommodation you want, and if more than one accommodation works, we may choose which one to provide. Furthermore, any accommodation that will impose undue hardship on United Methodist Homes is not considered reasonable.

6. Religious Observation

United Methodist Homes will make reasonable accommodation for an employee who requests accommodation for religious observation to the extent required by law and to the extent such requests do not cause an undue hardship on the operation of United Methodist Homes' facilities or programs.

7. Health Requirements

All new employees must satisfactorily complete a post-offer pre-employment physical and drug screening before beginning employment. Physical exams will be conducted annually or thereafter as required by applicable law/regulation, or at any time at the discretion of administration as arranged by the employer at no cost to the employee. United Methodist Homes' standard health form must be used for these physicals.

All new employees may be screened for tuberculosis. Tuberculosis screening is done at no cost to the employee.

8. Introductory Employment

The first three months of active employment are considered the introductory period. This introductory period allows each new employee to become familiar with United Methodist Homes and with the responsibilities of the position. It also gives United Methodist Homes the opportunity to observe and evaluate employee performance.

Employees in the introductory period of employment, as with all employees at United Methodist Homes, are "at will" employees which means that United Methodist Homes may terminate employment at any time, with or without cause or notice. Employees have the right to terminate their employment with United Methodist Homes.

9. Employee Performance Review

Your work performance and the work performance of all employees will be formally reviewed and evaluated on an annual basis. This performance appraisal will identify your strengths as well as assist you in improving any areas of performance that may need more attention. If you are not performing your job duties successfully, this process may be used to give you the opportunity to improve. In this case, you will be re-evaluated after a designated probation period.

You will be given the opportunity to appeal any evaluation which you believe is unfair or contains inaccurate information.

Employees will acknowledge the evaluation was done by signing it using our self-service system.

10. Promotions and Transfers

Job vacancies, as needed, will be posted on the UMH website and/or the UMH intranet. If you are interested in a position at another United Methodist Homes facility, you can apply on the UMH website. You will be contacted for an interview if you are qualified. For transfers to another UMH facility, if hired, a minimum of two weeks' notice to your current facility is required, and if more notice is needed. It should be agreed upon by the administrator/executive director of both facilities, in conjunction with the VP of Human Resources. Once in the position, you cannot transfer again until after you have been in the position for a minimum of six months.

At all times, positions will be filled based on the background and qualifications of the employees who have expressed their interest in the position. If you are requesting a transfer to another position within your facility, you must be in your current position for six months.

11. Resignation

If you resign, you must submit a written resignation giving the required notice for your level of employment: two weeks for non-exempt employees; three weeks for exempt employees; and four weeks for exempt, executive employees. Giving adequate notice is extremely important so we can provide continuity of care to our residents.

Failure to provide the facility with, and complete, the required notice before resigning employment will result in the forfeiture of any accrued paid time off.

On your last day of employment, you must return any property belonging to United Methodist Homes, such as keys, ID badges, cell phones, any electronic devices, etc. to the Human Resources Department and ensure that Human Resources has a correct forwarding address on file.

12. Hiring of Relatives and Domestic Partners

Immediate family members and domestic partners of current employees may be considered for employment provided that the family member or domestic partner is hired in a different department and/or shift. The employment of immediate family members and domestic partners of management personnel is discouraged; in exceptional circumstances, family members and domestic partners may be employed with the Administrator's approval.

13. Employee Meetings

To foster better communications between employees and administration, employee meetings are held periodically during the year at each facility. These forums are specifically designed not only to share information, but also for administration to listen to employee concerns.

14. Expense Reimbursement

United Methodist Homes will reimburse you for legitimate business-related expenses. Expenses must be pre-approved by a department director. Requests for reimbursement must be submitted on the appropriate forms with required documentation and/or receipts.

C. EMPLOYMENT CLASSIFICATION

1. Regular Employment

Upon satisfactory completion of the introductory period, any employee working a designated schedule for the facility is considered a regular employee whether working full-time or part-time.

2. Temporary Employment

A temporary employee is one with a limited work assignment. Sick time is accrued (required sick). If an employee attains regular status during or after an assignment, the individual's hire date will revert back to the date the temporary employment began. If this occurs, entitlements will begin accruing effective the date that regular status is obtained. (However, the three-month waiting period for scheduling paid time off reverts back to the hire date.) Required sick is transferred to extended illness bank if regular status is obtained. Any unused time left in the required sick bank will not be paid to the employee upon termination of employment.

3. On-Call Employment

On-call employees are individuals who are hired as call-ins to be scheduled as needed and must work at least one shift in a three month period. Some departments may have stricter guidelines. The on-call employee does not have a regular status. On call status accrue sick time (required sick). Required sick is transferred to extended illness bank if regular status is obtained. Any unused time left in the required sick bank will not be paid to the employee upon termination of employment.

4. Weekend Block Program

This program is a scheduling alternative in the nursing dept. at United Methodist Homes. Participants receive no paid time off and no shift differential for the scheduled weekend block hours. Staff in the program accrue sick time (required sick). Sick time is transferred to extended illness bank if regular status is obtained. Any unused time left in the required sick bank will not be paid to the employee upon termination of employment.

Participants are required to work 10 weekends in a 12-week period and will receive a bonus weekend (paid weekend off) for working the 10 weekends according to an established schedule. Hiring rates will be based on the individual's placement in that job category range. For further details, see your Human Resources representative.

5. Wage and Hour Classifications

In addition to the categories above, each employee will be classified as either non-exempt or exempt as defined by applicable federal and state wage and hour laws.

Non-exempt employees are those employees who are required to be paid overtime pay for all hours worked over 40 hours a week, in accordance with applicable overtime law.

Exempt employees are those employees deemed exempt from overtime payment eligibility in accordance with applicable federal and state wage and hour laws, and are paid on a salaried basis.

D. WORK DAY

1. Orientation

As a new employee, you must attend required state mandated orientation programs arranged by the Human Resources Department and staff education. Human resources, facility and department policies and procedures will be reviewed. Necessary employment forms will be completed at that time.

2. In-Service Education

You will be required to complete appropriate in-service education programs held at your facility, on the website, or another facility, in accordance with state and federal statutes. A record of your attendance will be kept, and will be reflected in your annual evaluation. You will be paid if it is necessary to complete during non-work time mandatory in-services.

You may request financial assistance from United Methodist Homes to attend outside seminars, conferences and continuing professional education programs. Written requests should be submitted to your administrator for approval.

3. Compensation

It is our policy and practice to accurately compensate employees and to do so in compliance with all applicable state and federal laws. To ensure that you are paid properly for all time worked and that no improper deductions are made, you must record correctly all work time and review your paychecks promptly to identify and report all errors. You must not engage in off-the-clock or unrecorded work.

Review Your Pay Stub. We make every effort to ensure our employees are paid correctly. Occasionally inadvertent mistakes can happen. If there should ever be a mistake in your paycheck, please let your department manager know immediately and corrections will usually be made by the next pay period.

4. Overtime

Under applicable federal and state law, all hourly employees (non-exempt) will be paid for overtime.

- All hourly employees are under the 40-Hour Rule: Overtime will be paid at a rate of time and one-half of the employee's regular rate of pay for any hours worked in excess of 40 per workweek.
- A workday begins at 11:00 PM and ends at 10:59 PM the following day.
- A workweek is considered to begin at 11:00 PM on Saturday and end after 7 consecutive 24-hour periods at which time a new workweek begins.
- A pay period consists of two consecutive workweeks.
- Employees of United Methodist Homes are paid on a bi-weekly basis, normally on Thursdays.

Human Resources will review the overtime policy with each non-exempt employee and receive a signed acknowledgement from the employee detailing the overtime rule.

5. Exempt Employee Compensation

If you are classified as an exempt salaried employee, you will receive a salary which is intended to compensate you for all hours that you may work for United Methodist Homes. This salary will be established at the time of hire or when you become classified as an exempt employee. While it may be subject to review and modification from time to time, such as during salary review times, the salary will be a predetermined amount that will not be subject to deductions for variations in the quantity or quality of the work you perform.

You will receive your full salary for any workweek in which work is performed. However, under federal law, your salary is subject to certain deductions. For example, absent contrary state law requirements, your salary can be reduced for the following reasons in a workweek in which work was performed:

- Full-day absences for personal reasons.
- Full-day absences for sickness or disability, since the organization has a paid time off plan and short-term disability insurance plan.
- Full-day disciplinary suspensions for infractions of safety rules of major significance (including those that could cause serious harm to others).
- Family and Medical Leave absences (either full or partial day absences).
- To offset amounts received as payment for jury or witness fees, or military pay.
- Unpaid disciplinary suspensions of one or more full days for significant infractions of major workplace conduct rules set forth in written policies.
- The first or last week of employment in the event you work less than a full week.

Your salary also may be reduced for certain types of deductions, such as your portion of health, dental or life insurance premiums; state, federal or local taxes; social security; or voluntary contributions to a 403(b) retirement plan. In any workweek in which you performed any work, your salary will not be reduced for any of the following reasons:

- Partial day absences for personal reasons, sickness or disability.
- Your absence because the facility is closed on a scheduled work day.
- Absences for jury duty, attendance as a witness, or military leave in any week in which you have performed any work.
- Any other deductions prohibited by state or federal law.

Please note: You will be required to use accrued paid time off for full- or half day absences. However, your salary will not be reduced for half day absences if you do not have accrued paid time off.

If an exempt employee believes that an improper deduction has been made from his/her pay, the employee should immediately contact the Human Resource Department and there will be a

prompt and full investigation. If it is determined that the deduction was improper, the employee will be reimbursed and steps will be taken to ensure that such improper deductions do not recur. An employee will not be retaliated against for the complaining about an improper deduction.

6. Meal Breaks

Qualifying employees receive an uninterrupted 30-minute unpaid meal break scheduled by the supervisor. Forfeiting your meal period is not permitted. A second meal break may be required depending on the length of your shift. Employees are permitted to leave the property after advising the supervisor and must swipe their time badge out upon leaving, and swipe back in after completing their 30 minute meal break. In the event a meal period is missed or interrupted, you should notify your supervisor or Human Resources and fill out a missed/interrupted meal break form to get paid.

You may also be permitted a work break consisting of one paid 15-minute break for every four hours worked. Scheduling of the break time depends on the workload.

7. Rights of Nursing Mothers

United Methodist Homes will provide reasonable break time each day to allow an employee to express breast milk for her nursing child for up to 3 years following childbirth. The break time may be a separate unpaid break, or employers may allow employees to use paid meal or break times. Employers must make reasonable efforts to provide a room or area, other than a bathroom, in close proximity to the work area where the employee can express breast milk in privacy. Discrimination against an employee who chooses to express breast milk in the workplace is prohibited.

8. Hazardous Travel Policy

As a healthcare organization, United Methodist Homes recognizes and values the role each and every employee has in the ability to meet the company's mission and the needs of our resident populations. With this in mind, the Homes considers all of its employees as essential to its daily operations, especially in times of natural or manmade disasters and events requiring a State of Emergency.

In such situations the following practices will be applied:

- Employees are expected to make every effort to be present for their scheduled shifts.
- All employees, upon hire, are provided an identification badge which states "Healthcare Personnel" on the back of the badge. This badge should be in the employee's possession while traveling to and from work locations and shown to an inspecting official if requested.
- Employees are expected to communicate, with their department manager or a designee, if they are unable to make it to their work location.

- In situations where it is declared a **state of emergency**, **with a travel ban**, and makes it impossible for an employee to be present for their scheduled shift, such as impassable roads, building or facility closures, evacuations, etc., the employee will be required to use available PTO for the time missed. Such absences will not be considered an unscheduled occurrence under the attendance policy. However, In the event that an employee is not able to get to their work location and transportation is offered and refused, UMH will deem this an unscheduled occurrence under the attendance policy.
- Employees may be required to assist in different departments or different locations, work in different roles and work additional hours as necessitated by the situation.

9. Recording Working Time

Non-exempt Employees. All hourly employees (barring designated exceptions) of United Methodist Homes must swipe in and out daily on a time clock. It is important that your timecard reflects accurately the amount of time you worked in any given pay period; this information is used to process paychecks. Each employee must verify that the reported hours worked are complete and accurate (and that there is no unrecorded or "off-the-clock" work). In the event a swipe is missed, you must see your supervisor or department director who will make the appropriate changes and additions. Your time card must accurately reflect all regular and overtime hours worked, any absences, early or late arrivals, early or late departures and meal breaks. When you receive each pay check, please verify immediately that you were paid correctly for all regular and overtime hours worked each workweek.

It is a violation of United Methodist Homes' policy for any employee to falsify, alter or swipe another employee's badge. It is also a serious violation of policy for any employee or manager to instruct another employee to incorrectly or falsely report hours worked or alter another employee's badge to under- or over-report hours worked. If any manager or employee instructs you to (1) incorrectly or falsely under- or over-report your hours worked, (2) alter another employee's time record to inaccurately or falsely report that employee's hours worked, or (3) conceal any falsification of time records or to violate this policy, report it immediately to the Human Resources Department.

You should not work any hours outside of your scheduled work day unless your supervisor has authorized the unscheduled work in advance. Do not start work early, finish work late, work during a meal break or perform any other extra or overtime work unless you are authorized to do so and that time is recorded from your badge. Employees are prohibited from performing any "off-the-clock" work. "Off-the-clock" work means work you may perform while not punched in. Any employee who fails to report or inaccurately reports any hours worked will be subject to disciplinary action, up to and including termination. For every eight minutes beyond each quarter hour that an hourly non-exempt employee is late or leaves early, the employee will be docked for fifteen minutes of pay. For every 8 minutes before each quarter hour you arrive before your shift or stay after, you will get paid for 15 minutes.

10. Missed Punch Policy

It is the policy of United Methodist Homes that all hourly paid employees accurately record their hours worked by punching in and out on the time clock. This policy also applies to employees who use computer timestamp to record their hours worked. A missed punch is defined as not punching in at the start and/or end of a shift (or lunch period when necessary) due to forgetting to punch, forgetting to bring your badge to work, or losing your badge.

If an employee misses a time clock punch, it is his or her responsibility to complete a missed punch form immediately after discovering he or she has a missed punch. It is also the employee's responsibility to obtain their supervisor's signature on the form at the time the form is completed. The form must be turned into the person responsible for timekeeping in the employee's department.

The missed punch form must accurately reflect the missed punches. Excessive missed punches will result in disciplinary action. Deliberately misrepresenting times worked will result in termination.

Employees must report lost or stolen badges to Human Resources immediately. Badges will be replaced at no cost to the employee.

E. ATTENDANCE AND LEAVES

1. Attendance

It is the policy of United Methodist Homes to maintain a standard attendance policy to establish reasonable expectations of attendance and monitor each employee to ensure all employees are treated in a fair and equitable manner. United Methodist Homes will implement this policy consistent with federal and state law including the American's with Disability Act (ADA) as amended, and will consider requests for reasonable accommodation by qualified employees with a disability as defined by the ADA as amended.

DEFINITIONS

Unscheduled Absence/PTO – An absence that has not been arranged in advance and approved by an employee's manager according to policy. Common examples are reporting off for a personal illness, emergency, or family responsibility. It is recognized that the PTO policy permits some use of accumulated PTO days for short-term absences on an unscheduled basis. The provision of unscheduled PTO payments for such short-term absences shall not in any way be construed to mean that the employee's absence has been excused. It is important to note that the classification of an absence as unscheduled is not assigning fault, but unscheduled absences negatively impact the organization and must be minimized.

Occurrence – An occurrence is a record of a single day or a continuous period of less than seven (7) calendar days of an unscheduled absence. For absences of greater than seven (7) calendar days, refer to the Family and Medical Leave and Personal Leave policies. If an employee reports to work and leaves/quits early before completing at least three quarters of their scheduled shift, the day is considered a full absence occurrence. Once an occurrence is logged it continues to be active until the rolling year has passed by the first incident that contributed to the occurrence.

Scheduled Absence/PTO – An absence that has been arranged in advance in compliance with United Methodist Homes and department policy as outlined in the Paid Time Off policy. Common examples are vacation, holiday, personal time, bereavement, and pre-scheduled surgery/medical leave. No occurrences are issued for scheduled absences.

Early Quit – An instance where the employee leaves work before the end of their scheduled shift except in the circumstance where the manager determines that workload dictates that the employee is not needed at work. An example of a situation that would not be counted as an unscheduled absence is a period of low daily census where United Methodist Homes benefits from the employee leaving work. If an employee reports to work and quits early before completing at least three quarters (75%) of their scheduled shift, the day is considered a full absence occurrence.

No Call / No Show – An instance where an employee does not report to work or call in to report an absence. Unless an extenuating circumstance is present, such as emergency hospitalization, this is considered a major violation of United Methodist Homes policy which warrants immediate disciplinary action.

Job Abandonment – An instance where an employee does not report to work or call in to report an absence for three (3) consecutive work days.

DOCUMENTATION

Employees are responsible for maintaining reliable attendance and accurately recording their time for entry according to the process established in their department. When an employee becomes aware of the need or desire for scheduled PTO, the employee should request approval from their manager. Once an advance PTO request is approved by the manger, the PTO is classified as "Scheduled PTO" when taken by the employee.

In the event an employee is unable to plan for an absence, the employee should report the absence to their manager, or designee, no later than two (2) hours prior to the start of his or her scheduled shift. Supervisors and/or Schedulers will maintain documentation of occurrences of unscheduled absences. Supervisors and/or Schedulers will also track instances of early quits. There are codes within the Kronos system that allows for systematic tracking of such events that Supervisors and/or Schedules shall use for this purpose.

Once an absence exceeds seven (7) calendar days, United Methodist Homes reserves the right to require employees to submit documentation substantiating absences or undergo a physical

examination to validate the reasons for an absence/ ensure fitness of employee for duty. Physician documentation related to an absence does not "excuse" the absence, but may be factored in when considering if an employee's attendance record warrants disciplinary action.

Employees who believe that they, or a covered family member, have a serious health condition which may qualify for Family and Medical Leave should contact Human Resources as soon as possible to review the situation and determine what options are available. Absences related to an approved Family and Medical Leave do not count as occurrences for attendance management purposes.

Managers are expected to monitor employee attendance and to promptly take corrective action when an employee violates attendance rules. Managers are encouraged to identify potential attendance problems early and to counsel employees to determine if something can be done to improve attendance issues before they reach the need for disciplinary action. Consideration for re-evaluating occurrences may be given to employees who take steps to improve their attendance through such means as Employee Assistance Program counseling.

Disciplinary steps based on occurrences in a rolling 12-month period:

Absenteeism and will be monitored on a twelve (12) month rolling calendar basis. Occurrences greater than 12 months old will not be considered when determining the next incremental step of disciplinary action. A disciplinary step may be repeated as needed. If an employee has no disciplinary action for 12 months, any new sequence would start at the verbal warning stage.

	Employee Notified of their Number of Occurrences	**Verbal Counseling**	**Written Warning**	**Final Written Warning**	**Termination**
Full Shift unplanned Absence or Early Quit	3rd Occurrence	5th Occurrence	6th Occurrence	7th Occurrence	8th Occurrence
No Call / No Show				1st Occurrence	2nd Occurrence
Job Abandonment					1st instance of no call/no show for 3 days
Employee in Initial Introductory Period		1st occurrence between time of hire and 90th day		3nd occurrence between time of hire and 90th day	4th occurrence between time of hire and 90th day

2. Tardiness

It is the policy of United Methodist Homes to maintain a standard tardiness policy to establish reasonable expectations of arrival times and to monitor employees to ensure they are treated in a fair and equitable manner. An employee is expected to be at his or her workstation and prepared to work at his or her designated start time.

- Any employee who clocks in 8 minutes or more beyond their scheduled start time will be considered tardy.
- An employee is required to notify his or her supervisor if they are going to arrive more than 15 minutes past their scheduled start time.
- A maximum of fifteen (15) instances of tardiness are allowed in a calendar year (January through December) for all employees.
- The disciplinary process will begin on the fourth tardiness as follows:
    a. 4th tardiness will result in a Verbal Warning.
    b. 8th tardiness will result in the 1st Written Warning.
    c. 12th tardiness will result in a 2nd Written Warning.
    d. 14th tardiness will result in a 1-day unpaid suspension.
    e. 16th tardiness will result in termination.
- Scheduling the day of suspension will be at the discretion of the department director.
- Tardiness that is covered under FMLA, Bereavement, or Jury Duty would not be considered violations under the Tardiness Policy.
- The Tardiness Policy does not apply to exempt management and executive employees, or employees who are allowed to work a flexible schedule as determined by their department director.

3. Family and Medical Leave

EMPLOYEE RIGHTS AND RESPONSIBILITIES

A. Employees Eligible for FMLA Leave

FMLA leave is available to "eligible employees." To be an "eligible employee," an employee must: (1) have been employed by the Company for at least 12 months (which need not be consecutive); (2) have been employed by the Company for at least 1250 hours of service during the 12 month period immediately preceding the commencement of the leave; and (3) be employed at a worksite where 50 or more employees are located within 75 miles of the worksite.

When an employee requests FMLA leave, or when the Company acquires knowledge that an employee's leave may be for an FMLA-qualifying reason, the Company must notify the employee of the employee's eligibility to take FMLA leave within five business days, absent extenuating circumstances. Employee eligibility is determined (and notice will be provided) at the commencement of the first instance of leave for each FMLA-qualifying reason in the applicable 12-month period. All FMLA absences for the same qualifying reason are considered a single leave and employee eligibility as to that reason for leave does not change during the applicable 12-month period.

B. Employee Entitlements for FMLA Leave

As described below, the FMLA provides eligible employees with a right to leave, health insurance benefits and, with some limited exceptions, job restoration. The FMLA also entitles employees to certain written notices concerning their potential eligibility for and designation of FMLA leave.

1. Basic FMLA Leave Entitlement

The FMLA provides eligible employees up to 12 workweeks of unpaid leave for certain family and medical reasons during a 12 month period. The 12 month period is determined on a rolling calendar. Leave may be taken for any one, or for a combination, of the following reasons:

- To care for the employee's child after birth, or placement for adoption or foster care;
- To care for the employee's spouse, son, daughter or parent (but not in-law) who has a serious health condition;
- For the employee's own serious health condition (including any period of incapacity due to pregnancy, prenatal medical care or childbirth) that makes the employee unable to perform one or more of the essential functions of the employee's job; and/or
- Because of any qualifying exigency arising out of the fact that an employee's spouse, son, daughter or parent is a covered military member on active duty or has been notified of an impending call or order to active duty status in the Armed Forces, including the National Guard or Reserves, in support of contingency operation.

A serious health condition is an illness, injury, impairment, or physical or mental condition that involves either an overnight stay in a medical care facility, or continuing treatment by a health care provider for a condition that either prevents the employee from performing the functions of the employee's job, or prevents the qualified family member from participating in school or other daily activities. Subject to certain conditions, the continuing treatment requirement may be met by a period of incapacity of more than 3 consecutive calendar days combined with at least two visits to a health care provider or one visit and a regimen of continuing treatment, or incapacity due to pregnancy, or incapacity due to a chronic condition. Other conditions may meet the definition of continuing treatment.

Qualifying exigencies may include attending certain military events, arranging for alternative childcare, addressing certain financial and legal arrangements, attending certain counseling sessions, and attending post-deployment reintegration briefings.

2. Additional Military Family Leave Entitlement (Injured Service member Leave)

In addition to the basic FMLA leave entitlement discussed above, an eligible employee who is the spouse, son, daughter, parent or next of kin of a covered service member is entitled to take up 26 weeks of leave during a single 12-month period to care for the service member or veteran with a serious injury or illness. Leave to care for a service member shall only be available during a single-12 month period and, when combined with other FMLA-qualifying leave, may not exceed 26 weeks during the single 12-month period. The single 12-month period begins on the first day an eligible employee takes leave to care for the injured service member. The caregiver leave extends to include veterans who are undergoing medical treatment, recuperation, or therapy for a serious injury or illness and who were members of the Armed Forces (including members of the National Guard or Reserves) at any time during the five years preceding the date of treatment, recuperation, or therapy.

When, during the "single 12-month period," leave qualifies as both leave to care for a covered service member and leave to care for a family member with a serious health condition, the Company will designate such leave as leave to care for a covered service member in the first instance and such leave shall not be designated and counted as both leave to care for a covered service member and leave to care for a family member with a serious health condition. As is the case with other FMLA leave, the Company may retroactively designate leave as leave to care for a covered service member.

A "covered service member" means a member of the Armed Forces, including a member of the National Guard or Reserves, who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is on the temporary retired list, for a serious injury or illness, or a veteran who is undergoing medical treatment, recuperation, or therapy for a serious injury or illness, and who was discharged within the past five years before the employee takes military caregiver leave to care for the veteran. A member of the Armed Forces would have a serious injury or illness if he/she has incurred an injury or illness in the line of duty while on active duty in the Armed Forces provided that the injury or illness may render the service member medically unfit to perform duties of the member's office, grade, rank or rating.

3. Intermittent Leave and Reduced Leave Schedules

FMLA leave usually will be taken for a period of consecutive days, weeks or months. However, employees also are entitled to take FMLA leave intermittently or on a reduced leave schedule when medically necessary due to a serious health condition of the employee or covered family member or the serious injury or illness of a covered service member.

4. Protection of Group Health Insurance Benefits

During FMLA leave, eligible employees are entitled to receive group health plan coverage on the same terms and conditions as if they had continued to work.

5. Restoration of Employment and Benefits

At the end of FMLA leave, subject to some exceptions including situations where job restoration of "key employees" will cause the Company substantial and grievous economic injury, employees generally have a right to return to the same or equivalent positions with equivalent pay, benefits and other employment terms. The Company will notify employees if they qualify as "key employees," if it intends to deny reinstatement, and of their rights in such instances. Use of FMLA leave will not result in the loss of any employment benefit that accrued prior to the start of an eligible employee's FMLA leave.

6. Notice of Eligibility for, and Designation of, FMLA Leave

Employees requesting FMLA leave are entitled to receive written notice from the Company telling them whether they are eligible for FMLA leave and, if not eligible, the reasons why they are not eligible. When eligible for FMLA leave, employees are entitled to receive written notice of: 1) their rights and responsibilities in connection with such leave; 2) the Company's designation of leave as FMLA-qualifying or non-qualifying, if not FMLA-qualifying, the reasons why; and 3) the amount of leave, if known, that will be counted against the employee's leave entitlement.

The Company may retroactively designate leave as FMLA leave with appropriate written notice to employees provided the Company's failure to designate leave as FMLA-qualifying at an earlier date did not cause harm or injury to the employee. In all cases where leaves qualify for FMLA protection, the Company and employee can mutually agree that leave be retroactively designated as FMLA leave.

C. Employee FMLA Leave Obligations

1. Provide Notice of the Need for Leave

Employees who take FMLA leave must timely notify the Company of their need for FMLA leave. The following describes the content and timing of such employee notices.

a. Content of Employee Notice

To trigger FMLA leave protections, employees must inform the Human Resources Department of the need for FMLA-qualifying leave and the anticipated timing and duration of the leave, if known. Employees may do this by either requesting FMLA leave specifically, or explaining the reasons for leave so as to allow the Company to determine that the leave is FMLA-qualifying. For example, employees might explain that:

- a medical condition renders them unable to perform the functions of their job;
- they are pregnant or have been hospitalized overnight;
- they or a covered family member are under the continuing care of a health care provider;
- the leave is due to a qualifying exigency cause by a covered military member being on active duty or called to active duty status; or

- if the leave is for a family member, that the condition renders the family member unable to perform daily activities or that the family member is a covered service member with a serious injury or illness.

Calling in "sick," without providing the reasons for the needed leave, will not be considered sufficient notice for FMLA leave under this policy. Employees must respond to the Company's questions to determine if absences are potentially FMLA-qualifying.

If employees fail to explain the reasons for FMLA leave, the leave may be delayed or denied. When employees seek leave due to FMLA-qualifying reasons for which the Company has previously provided FMLA-protected leave, they must specifically reference the qualifying reason for the leave or the need for FMLA leave.

b. Timing of Employee Notice

Employees must provide 30 days advance notice of the need to take FMLA leave when the need is foreseeable. When 30 days' notice is not possible, or the approximate timing of the need for leave is not foreseeable, employees must provide the Company notice of the need for leave as soon as practicable under the facts and circumstances of the particular case. Employees who fail to give 30 days' notice for foreseeable leave without a reasonable excuse for the delay, or otherwise fail to satisfy FMLA notice obligations, may have FMLA leave delayed until 30 days after the date that the employee provides the notice.

2. Cooperate in the Scheduling of Planned Medical Treatment (Including Accepting Transfers To Alternative Positions) and Intermittent Leave or Reduced Leave Schedules

When planning medical treatment, employees must consult with the Company and make a reasonable effort to schedule treatment so as not to unduly disrupt the Company's operations, subject to the approval of an employee's health care provider. Employees must consult with the Company prior to the scheduling of treatment to work out a treatment schedule which best suits the needs of both the Company and the employees, subject to the approval of an employee's health care provider. If employees providing notice of the need to take FMLA leave on an intermittent basis for planned medical treatment neglect to fulfill this obligation, the Company may require employees to attempt to make such arrangements, subject to the approval of the employee's health care provider.

When employees take intermittent or reduced work schedule leave for foreseeable planned medical treatment for the employee or a family member, including during a period of recovery from a serious health condition or to care for a covered service member, the Company may temporarily transfer employees, during the period that the intermittent or reduced leave schedules are required, to alternative positions with equivalent pay and benefits for which the employees are qualified and which better accommodate recurring periods of leave.

When employees seek intermittent leave or a reduced leave schedule for reasons unrelated to the planning of medical treatment, upon request, employees must advise the Company of the reason why such leave is medically necessary. In such instances, the Company and employee shall attempt to work out a leave schedule that meets the employee's needs without unduly

disrupting the Company's operations, subject to the approval of the employee's health care provider.

3. Submit Medical Certifications Supporting Need for FMLA Leave (Unrelated to Requests for Military Family Leave)

Depending on the nature of FMLA leave sought, employees may be required to submit medical certifications supporting their need for FMLA-qualifying leave. As described below, there generally are three types of FMLA medical certifications: an initial certification, a recertification, and a return to work/fitness for duty certification.

It is the employee's responsibility to provide the Company with timely, complete and sufficient medical certifications. Whenever the Company requests employees to provide FMLA medical certifications, employees must provide the requested certifications within 15 calendar days after the Company's request, unless it is not practicable to do so despite an employee's diligent, good faith efforts. The Company shall inform employees if submitted medical certifications are incomplete or insufficient and provide employees at least seven calendar days to cure deficiencies. The Company will delay or deny FMLA leave to employees who fail to timely cure deficiencies or otherwise fail to timely submit requested medical certifications.

With the employee's permission, the Human Resource Department may contact the employee's health care provider to authenticate or clarify completed and sufficient medical certifications. If employees choose not to provide the Company with authorization allowing it to clarify or authenticate certifications with health care providers, the Company may deny FMLA leave if certifications are unclear.

Whenever the Company deems it appropriate to do so, it may waive its right to receive timely, complete and/or sufficient FMLA medical certifications.

i. Initial Medical Certifications

Employees requesting leave because of their own, or a covered relation's, serious health condition, or to care for a covered service member, must supply medical certification supporting the need for such leave from their health care provider or, if applicable, the health care provider of their covered family or service member. If employees provide at least 30 days' notice of medical leave, they should submit the medical certification before leave begins. A new initial medical certification will be required on an annual basis for serious medical conditions lasting beyond a single leave year.

If the Company has reason to doubt initial medical certifications, it may require employees to obtain a second opinion at the Company's expense. If the opinions of the initial and second health care providers differ, the Company may, at its expense, require employees to obtain a third, final and binding certification from a health care provider designated or approved jointly by the Company and the employee.

The Company shall provide employees with copies of second or third medical opinions, upon request by employees. Requested copies shall be provided to employees within five business days unless extenuating circumstances prevent such action.

The Company will reimburse employees or family members for any reasonable "out of pocket" travel expenses incurred to obtain second or third medical opinions. Except in very rare circumstances, the Company will not require employees or family members to travel outside normal commuting distance for purposes of obtaining second or third medical opinions.

ii. Medical Re-certifications

Depending on the circumstances and duration of FMLA leave, the Company may require employees to provide recertification of medical conditions giving rise to the need for leave. The Company will notify employees if recertification is required and will give employees at least 15 calendar days to provide medical recertification.

Generally, the Company may request medical certification no more often than every thirty days and only in connection with an employee's absence. If medical certification indicates the minimum duration of the condition is more than 30 days, the Company will wait until that minimum duration expires before requesting medical recertification. In all cases, the Company may request recertification of a medical condition every six months in connection with an employee's absence.

The Company may request certification in less than 30 days, or before the minimum duration of the condition has elapsed, if: a) employees request extensions of leaves; b) circumstances described by the previous certification have changed significantly (e.g., the duration or frequency of the absence, the nature or severity of the illness, complications, etc.); or c) the Company receives information casting doubt upon an employee's stated reason for the absence or the continuing validity of a certification.

iii. Return to Work/Fitness for Duty Medical Certifications

Unless notified that providing such certifications is not necessary, employees returning to work from FMLA leaves that were taken because of their own serious health conditions that made them unable to perform their jobs must provide the Company medical certification confirming they are able to return to work and the employees' ability to perform the essential functions of the employees' position, with or without reasonable accommodation. The Company may delay and/or deny job restoration until employees provide return to work/fitness for duty certifications.

4. Submit Certifications Supporting Need for Military Family Leave

Upon request, the first time employees seek leave due to qualifying exigencies arising out of the active duty or call to active duty status of a covered military members, the Company may require employees to provide: 1) a copy of the covered military member's active duty orders or other documentation issued by the military indicating the covered military member is on active duty or call to active duty status and the dates of the covered military member's active duty service; and 2) a certification from the employee setting forth information concerning the nature of the qualifying exigency for which leave is requested. Employees shall provide a copy of new active duty orders or other documentation issued by the military for leaves arising out of qualifying exigencies arising out of a different active duty or call to active duty status of the same or a different covered military member.

When leave is taken to care for a covered service member with a serious injury or illness, the Company may require employees to obtain certifications completed by an authorized health care provider of the covered service member. In addition, and in accordance with the FMLA regulations, the Company may request that the certification submitted by employees set forth additional information provided by the employee and/or the covered service member confirming entitlement to such leave.

5. Substitute Paid Leave for Unpaid FMLA Leave

Employees may elect to use any accrued PTO and extended illness while taking unpaid FMLA leave. The substitution of paid time for unpaid FMLA leave time does not extend the length of FMLA leaves and the paid time will run concurrently with an employee's FMLA entitlement. If the leave is intermittent, extended illness can only be used for an employee's own health condition.

Leaves of absence taken in connection with a disability leave plan or workers' compensation injury/illness shall run concurrently with any FMLA leave entitlement. Upon written request, the Company will allow employees to use accrued paid time to supplement any paid disability benefits.

6. Pay Employee's Share of Health Insurance Premiums

As noted above, during FMLA leave, employees are entitled to continued group health plan coverage under the same conditions as if they had continued to work. Unless the Company notifies employees of other arrangements, whenever employees are receiving pay from the Company during FMLA leave, the Company will deduct the employee portion of the group health plan premium from the employee's paycheck in the same manner as if the employee was actively working. If FMLA leave is unpaid, employees must pay their portion of the group health premium through payroll by personal check or money order made payable to the United Methodist Homes and sent to the Benefits Manager at the Corporate Office, 10 Acre Place, Binghamton, NY 13904.

The Company's obligation to maintain health care coverage ceases if an employee's premium payment is more than 30 days late. If an employee's payment is more than 15 days late, the Company will send a letter notifying the employee that coverage will be dropped on a specified date unless the co-payment is received before that date. If employees do not return to work within 30 calendar days at the end of the leave period (unless employees cannot return to work because of a serious health condition or other circumstances beyond their control) they will be required to reimburse the Company for the cost of the premiums the Company paid for maintaining coverage during their unpaid FMLA leave.

7. Report Periodically Concerning Intent to Return to Work

Employees must contact the Human Resources Department regarding their status and intention to return to work at the end of the FMLA leave period. If an employee's anticipated return to work date changes and it becomes necessary for the employee to take more or less leave than originally anticipated, the employee must provide the Company with reasonable notice (i.e., within 2 business days) of the employee's changed circumstances and new return to work date. If employees give the Company unequivocal notice of their intent not to return to work, the

Company's obligation to maintain health benefits (subject to COBRA requirements) and to restore their positions cease.

D. Coordination of FMLA Leave with Other Leave Policies

The FMLA does not affect any federal, state or local law prohibiting discrimination, or supersede any State or local law which provides greater family or medical leave rights. For additional information concerning leave entitlements and obligations that might arise when FMLA leave is either not available or exhausted, please consult the Company's other leave policies in this handbook or contact Human Resources.

E. Questions and/or Complaints about FMLA Leave

If you have questions regarding this FMLA policy, please contact Human Resources. The Company is committed to complying with the FMLA and, whenever necessary, shall interpret and apply this policy in a manner consistent with the FMLA.

4. Leave of Absence

If you are not eligible for FMLA, you may be eligible for a medical leave of absence for your own personal health condition. Requests for such leaves of absence must, whenever possible, be submitted in writing to your Human Resources Department in advance of the leave. In order to qualify for a medical leave, your personal health condition must qualify for indemnity payments under New York State or Pennsylvania short-term disability or workers' compensation. United Methodist Homes will continue United Methodist Homes' portion of health and dental insurance premiums for two months during an approved medical leave. You will be responsible for paying your portion of the premiums, if any accrue during the leave. Arrangements for the payment of your share of the premiums must be made with Human Resources in advance of the leave. If you are on non-FMLA medical leave, you are required to supplement disability or workers' compensation payments with your accrued paid time off and extended illness bank hours until those hours are depleted. If you are approved for a non-FMLA medical leave, your position may not be held open during the leave. In the event United Methodist Homes fills your position during a medical leave, upon your return to work we will strive to identify another open position for which you are qualified. During such leaves, you do not accrue benefits such as paid time off. Upon returning to work, you will be at the same benefit level as you were before leaving (or as otherwise required by law), provided there is no change in your employment status or work schedule. United Methodist Homes' policy under The Americans with Disabilities Act will also be followed.

For any other type of leave, please contact your Human Resources Dept.

5. New York State Paid Family Leave (NY)

New York Paid Family Leave (PFL) program provides partial wage replacement to employees to help bond with a child, care for a close relative with a serious health condition (including preparation for and recovery from surgery related to organ or tissue donation), or help when a family member is called to active military service abroad.

Employees are also guaranteed to be able to return to their job and continue their health insurance. If you contribute to the cost of your health insurance, you must continue to pay your portion of the premium cost while on Paid Family Leave.

Paid family leave coverage will be included under UMH's disability policy. The cost will be fully funded by employees through payroll deduction.

To be eligible, an employee whose regular employment schedule is 20 or more hours per week must have been employed for at least 26 consecutive weeks preceding the first full day of leave, and an employee whose regular employment schedule is less than 20 hours per week must have been employed for at least 175 days preceding the first full day of leave.

Relatives with a Serious Health condition include, spouse, domestic partner, child and stepchild, parent and step parent, parent-in-law, grandparent, and grandchild.

Paid Family Leave is available for families when a spouse, child, domestic partner or parent of the employee is on active duty or has been notified of an impending call or order of active duty abroad.

Employees do not need to use leave in one block. When it is medically necessary, or otherwise permitted, employees may take leave intermittently or on a reduced schedule, but must be taken in full day increments.

Employees must provide United Methodist Homes with at least 30 days' advance notice before leave is to begin if the qualifying event is foreseeable. If 30 days' advance notice is not practicable for reasons such as lack of knowledge of when leave will begin or a change in circumstance or medical emergency, notice must be given as soon as practicable. Employee must notify Human Resources as soon as practicable if dates of scheduled leave change or are extended or were initially unknown. Medical or military leave certification may be required.

Employees may choose to use PTO while taking Paid Family Leave to receive 100% of their salary. A period of Paid Family Leave may be concurrently designated by United Methodist Homes as Family Medical Leave. Extended illness is not available to use under PFL.

Paid Family Leave cannot be used for one's own disability or military service.

For more information on how to submit a Request for Paid Family Leave, see your Human Resources Dept.

6. Military Leave

If you are a member of the National Guard or the Reserve of any branch of the United States Armed Forces, a leave of absence will be granted in accordance with federal and state law. During this leave, you may be able to continue your group health coverage for up to 24 months by taking steps similar to those required for COBRA coverage. For more information on this continuation of coverage right, check your plan document or contact Human Resources. If you wish to take paid time off already earned, you may do so for this purpose. This however, is entirely your option and is never mandatory.

7. Bereavement Days

In the event of a death in your immediate family, you will be eligible to receive paid bereavement leave. Bereavement will be considered on an individual basis in consultation with your immediate supervisor and your Human Resources Director.

United Methodist Homes defines "immediate family" as:

- Your spouse, parent, child or sibling;
- Your spouse's parent, child or sibling;
- Your child's spouse;
- Yours or your spouse's grandparents or grandchildren.

Special consideration will also be given to any other person whose association with you was similar to any of the above relations.

You are eligible for this benefit regardless of length of service. On call and weekend block are not eligible. Bereavement days must be taken immediately following the death unless circumstances require otherwise, in which case it must be approved by Human Resources. You will be compensated for only those days you are scheduled to work, up to a maximum of three days depending on the circumstance.

8. Jury Duty

If you are summoned for jury duty, a copy of the summons needs to be provided to your department director immediately. United Methodist Homes will pay up to 30 working days for leave necessitated by jury duty. Please see Human Resources for further details.

9. Blood Donation Leave (NY)

Pursuant to the New York Labor Law, United Methodist Homes will provide employees who work an average of 20 or more hours per week with time off to donate blood. United Methodist Homes will grant either: (i) three (3) hours of leave in any 12-month period for employees seeking to donate blood, off premises, or (ii) allow such employees to donate blood during work hours, without the use of accumulated leave time, at least two (2) times a year at a "convenient time and place set by the employer", including blood drives at the employee's place of employment.

The leave for off-premises donation is unpaid, and United Methodist Homes will provide such leave at least once per calendar year during the employee's regular working hours. Such leave will not accrue (i.e., carry over) if not used during the calendar year. See Human Resources for further information.

10. Leave to Donate Bone Marrow (NY)

In accordance with New York State Law, United Methodist Homes will provide eligible employees up to 24 hours of leave in order to donate bone marrow. Employees will be required

to show verification by a physician for the purpose and length of each leave requested by the employee to donate bone marrow.

11. Voting leave (NY)

A registered voter without sufficient time outside of scheduled working hours to vote may request leave time to enable him or her to vote in any election. Up to two hours of this leave time will be paid leave. The remaining leave time will be unpaid.

The employee shall be allowed time off for voting only at the beginning or end of his or her working shift, as UMH may designate, unless otherwise mutually agreed.

If the employee requires working time off to vote the employee shall notify his or her employer not less than two working days before the day of the election that he or she requires time off to vote in accordance with the provisions of this section.

F. EMPLOYEE BENEFITS

This handbook contains a very general description of the benefits to which employees may be entitled. This general explanation is not intended to, and does not provide all the details of these benefits. This handbook does not change or otherwise interpret the terms of official plan documents. Your rights can be determined only by referring to the full text of the official plan documents, which are available for your examination from the Human Resources Department. To the extent that any of the information contained in this employee handbook is inconsistent with the official plan documents, the provisions of the official documents will govern in all cases. United Methodist Homes reserves the right, in its sole and absolute discretion, to amend, modify or terminate, in whole or in part, any or all of the provisions of the benefit plans described herein. Further, United Methodist Homes reserves the exclusive right, power and authority, in its sole and absolute discretion, to administer, apply and interpret the benefit plans described herein, and to decide all matters arising in connection with the operation or administration of such plans.

1. Paid Time Off Program

United Methodist Homes believes in promoting a balance between our employees' home and work life. Our Paid Time Off (PTO) program provides employees with more flexibility in the use of their time off to meet their individual or family needs. PTO is also designed to encourage the scheduling of absences in advance so that adequate staffing is available to provide the highest quality of care to our residents. In addition, PTO provides employees with an incentive for good attendance.

PTO provides paid time off for eligible employees for the purpose of rest, relaxation, illness, personal and family needs. PTO combines vacation, sick, holiday and any other personal time (excluding extended illness time) off into one benefit program.

Years of Service	PTO days Accrual Hourly Employee	Accrual Factors Hourly Employee	PTO days Accrual Salaried Employee	Accrual Factors Salaried Employee
1 – 5+	23	.09705	28	.12069
6+	24	.10169	29	.12554
7+	25	.10638	30	.13043
8+	26	.11111	31	.13537
9+	27	.11588	32	.14035
10+	28	.12069	33	.14537
11+	29	.12554	33	.14537
12+	30	.13043	33	.14537
13+	31	.13537	33	.14537
14+	32	.14035	33	.14537
15+	33	.14537	33	.14537

Procedures:

All regular employees accrue PTO from their date of hire. Employees accrue PTO based on the number of hours worked per week, *excluding overtime hours*. Temporary employees are not eligible for PTO. Accrual for PTO will at all times meet the minimum accrual required by NYS Paid Sick Leave. New employees may use PTO on the first day following the completion of their introductory employment of 90 days.

Full time employees will accrue PTO for each pay period based on the above chart.

Part time employees will accrue PTO on a prorated basis based on regular hours worked. PTO does not accrue during leaves of absence or on non-worked hours.

- Eligible employees will also accrue time into an extended illness bank each year. The accrual rate will be 4 days per year for full time employees and prorated days for part time employees. Employees may earn up to a maximum total of 240 hours in the extended illness bank. Hours converted into the Extended Illness Bank at the time of implementation of this policy (July 29, 2001) are excluded from this maximum cap and will be utilized first.

Employees may withdraw from their extended illness bank for serious illnesses, injuries or situations where their absence from work is necessary and exceeds 7 calendar days. When on an intermittent leave, employees can only withdraw from their extended illness bank when the intermittent leave is for **their own health condition.** Employees are eligible to use this bank upon completion of their 90-day introductory employment.

Any unused time left in the Extended Illness Bank will not be paid to the employee upon termination of employment.

In order to schedule PTO the following guidelines will be followed as a minimum:

- When requesting two days or less – one week written notice prior to the first scheduled day off is required.
- When requesting three or more days – two weeks written notice prior to the first scheduled day off is required.

Individual departments, for example nursing and dietary, may require additional notice based on the essential functions of their staff and complexity of schedules.

Every effort will be taken to accommodate the employee's needs in a timely manner while considering the needs of the department.

The approval of time off in excess of the number of hours an employee has accrued will be a management decision and handled on a case by case basis.

Absences will be considered unscheduled if appropriate notice is not given.

- Since our employee's attendance is essential in providing quality care to our residents, United Methodist Homes will monitor each employee's use of unscheduled days. Those employees who exceed the standard for unscheduled absences based on United Methodist Homes' attendance policy will be subject to disciplinary action up to and including termination.

Unscheduled absences do not include leave under the Family and Medical Leave Act, jury duty, military leave, bereavement leave or any other legislatively-mandated leave of absence.

- Traditionally United Methodist Homes recognizes the following holidays:

New Year's Day	Memorial Day	Easter	Independence Day
Labor Day	Thanksgiving	Christmas	

If you are scheduled to work on one of these days, you will be paid for the hours worked. In addition, you may elect to be paid a maximum of 8 hours from your PTO account. Part time employees working in excess of their rated hours on these days would receive the additional hours as extra pay. Employees not working one of these days can utilize PTO equal to their scheduled hours and receive pay for these hours or leave them in their PTO account to be used at a later date. Any unscheduled time off on a holiday will not be paid, even if PTO hours are available.

NOTE: An employee cannot use PTO hours for the holiday if it will exceed their regularly scheduled hours for the pay period.

- Payment of PTO hours will be at the employee's current base rate of pay.
- To be eligible for payment of PTO at the time of termination, an employee must provide appropriate written notice of resignation. Administration will determine the employee's eligibility for payment of PTO upon resignation. Failure to provide the facility with the required notice of resignation before terminating employment, will result in the forfeiture of any accrued PTO.
- Each employee's PTO account will be reviewed during the last full pay period in November each Year. Any unused PTO in excess of 160 hours will be paid directly to the employee as a PTO buy-back. The buy-back will be paid to the employee each year in December. Payment will be distributed in a separate check at the employee's current base rate of pay with all appropriate payroll taxes withheld. An employee's remaining PTO hours, not to exceed 160 hours, will be carried over into the next measurement year.

Full-time employees (those whose regular schedule is at least 37.5 hours per week) are required to use a minimum of 112 hours during the 12 month period for which the buy-back applies. If a full time employee does not use the required 112 hours they will forfeit the difference of hours not used. As an example: A full-time employee who only uses 80 hours throughout the year would forfeit 32 hours of PTO before the buy-back would be paid.

Part time employees (those whose regular schedule is less than 37.5 hours per week) are required to use a minimum of 64 hours during the 12 month period for which the buy-back applies. If a part time employee does not use the required 64 hours they will forfeit the difference of hours not used.

If an employee has PTO hours available in their bank, they are required to use these hours for any requests for time off with the exception of bereavement time, jury duty, situations appropriate for extended illness use, or where mandated use is not permitted by law.

2. Health, Dental and Vision Benefits

All new employees who meet eligibility requirements are able to enroll in group health, dental or vision insurance plans. Please see the Human Resources Department for eligibility requirements.

If you want health, dental or vision insurance after the enrollment period has expired, you can apply for coverage only during the annual open enrollment unless a HIPAA (Health Insurance Portability and Accountability Act) event has occurred. If you do not want to participate in group coverage, you must sign a waiver form.

United Methodist Homes will contribute a fixed amount, determined annually, toward the cost of health, dental and vision insurance premiums. The cost of dependent coverage varies by plan and is deducted from your pay through payroll deduction. Enrollment is available using our self-service system.

3. Health Management Program

The daily demands of life and work can make it hard to live a healthy lifestyle. United Methodist Homes appreciates you and wants to provide the tools and support you need to be healthy and well. We have partnered with a leading health management services provider to bring you the latest health and wellness content, educational programs, and an online community to keep you motivated.

The wellness program is a vital part of our overall benefits program. When your goal is to have more energy, to lose weight, to manage stress, or to improve your diet, the wellness program can help you. All health plan eligible employees and spouses are eligible to participate.

4. Life Insurance

Life insurance is available for up to twice your annual salary. All new employees who meet eligibility requirements are able to enroll using our self-service system. Please see the Human Resources Department for eligibility requirements.

5. Retirement Plan

United Methodist Homes sponsors a tax-deferred annuity plan which provides all eligible employees with the opportunity to set aside money for retirement in an account called a 403(b). This plan provides two valuable tax benefits: when you make salary deferral contributions, you reduce your taxable income which reduces your current federal and possibly your state income tax; and your investments grow tax-free. Further information and eligibility requirements are available at Human Resources Department or through your plan administrator.

6. Disability

Employees are covered by disability insurance (DBL). In the event of a non-occupational accident or illness, including pregnancy related disability, consistent with applicable laws, a weekly benefit is paid beginning on the eighth day of disability. When you are eligible for DBL, employees also eligible for FMLA may elect to supplement DBL with time from their extended illness bank or paid time off account to receive 100% of their salary. If an employee is DBL eligible but not FMLA eligible, then United Methodist Homes will pay, at your choice, the difference between the disability and your regular pay utilizing time from your extended illness bank or your paid time off account until all hours are depleted. Disability forms will be processed through the Human Resources Department.

While on disability, you do not accrue benefits such as paid time off. If you are covered by one of the group health plans, United Methodist Homes will continue to contribute towards the cost of this coverage for 2 months or for 12 weeks if you qualify under FMLA. After that period, you must assume the full cost of the health benefits.

It is important that you keep the Human Resources Department updated on your status while out of work on disability leave. You may be required to furnish periodic medical updates to remain eligible for DBL benefits.

7. Workers' Compensation

All employees are covered by workers' compensation laws for injuries or illnesses which occur in the course of employment. You are responsible for reporting work-related injuries or illnesses to your supervisor immediately. Injuries or illnesses which result in medical care or lost time from work will be handled in accordance with the state workers' compensation laws. Please contact the Human Resources Department for reporting information and further details.

If you are eligible for workers' compensation benefits, United Methodist Homes will pay the difference between workers' compensation and your regular pay, at your choice, utilizing time from your extended illness bank or your paid time off account until all hours are depleted, unless mandated use is not permitted by law.

8. Employee Assistance Program

We all face problems from time to time. Usually we can handle them ourselves without the help of outside resources, but sometimes we're not able to resolve the problems and need to reach out for help. For those times, a confidential Employee Assistance Program (EAP) is offered by UMH to benefit you and your family. The benefit provides resources and solutions for many of the problems you may encounter.

Just as health insurance is designed to address your physical health, your EAP benefit is designed to assist your emotional and mental well-being. Because the EAP is fully paid for by UMH, there is no cost to the employee. Informational pamphlets are available in Human Resources and flyers are posted on employee bulletin boards.

9. Tuition Support Policies

Eligible employees and prospective employees may be granted a tuition assistance scholarship award towards a Nursing degree or Tuition forgiveness. See your Human Resources Department for further information. Other programs for tuition support and forgiveness may be available.

10. Direct Deposit

United Methodist Homes provides optional direct deposit of pay for all employees. This service may be arranged by completing the appropriate form available through the Human Resources Department. Under normal circumstances, the deposit will be in your account on payday or no later than the Friday after a payday. United Methodist Homes traditionally pays employees on a bi-weekly basis on Thursday. Your pay statements are available through employee self-service.

G. RULES AND REGULATIONS

1. Coaching and Counseling Procedure

It is imperative all employees conduct themselves in a professional manner, not only with the residents and families, but with their fellow employees.

In order to maintain high standards and help you and all employees perform duties professionally and responsibly, coaching and counseling may be used.

Coaching may include one-on-one meetings with the employee and supervisor to correct a problem. Counseling may include verbal warning, written warnings, reduction in scheduled hours, suspension without pay or termination. Depending on the situation, severity of violation, employee's work record and disciplinary history, management in its discretion reserves the right to determine and take appropriate disciplinary action, up to and including the immediate termination of an employee's employment. In these cases, the department director will consult with the Human Resources Director. If requested, a copy of the written counseling statement will be provided to the involved employee. Employees will be asked to sign the statement solely to acknowledge its receipt.

2. Termination

There are some actions that warrant immediate termination in the best interest of the facility. All of the surrounding facts and circumstances are considered in making this decision. The following is a list of examples of some of the acts of misconduct that may be cause for such termination:

1. Fighting on the grounds or in the buildings of United Methodist Homes' facility.
2. Working under the influence of alcohol or drugs other than those prescribed by a doctor.
3. Deliberately damaging facility property.
4. Sleeping on the job.
5. Resident abuse of any kind.
6. Soliciting or accepting tips, gifts, gratuities or loans from residents.
7. Refusal to follow the instructions of supervisors, including refusal to accept job assignments (insubordination).
8. Theft.
9. Being absent from the job for more than one day without notification may be subject to termination unless circumstances beyond your control prevent notification.
10. Falsification of employment application, post offer paperwork, or other facility records.

11. Impermissibly falsifying, removing, accessing, using, disclosing, modifying, copying or destroying documents or information in whatever form and wherever located regarding residents, employees or policies.
12. Discussing your personal issues or those involving another employee with residents/family members.
13. Covering up mistakes or faulty work.
14. Intentionally swiping in or out on someone else's ID badge.
15. Tampering with another employee's ID badge.
16. Job-related problems during introductory period of employment.

This list serves as a general a guideline, and is not intended to be all-inclusive of conduct or actions warranting discipline. Depending on the particular situation, such as circumstances involved, severity of violation, employee's work record and disciplinary history, management in its discretion reserves the right to determine and take appropriate disciplinary action, up to and including the immediate termination of employment.

3. Fair Treatment Procedure

You may present a concern you have about any aspect of your employment according to the following procedure:

Step One: State the complaint or concern to your department director. His/her decision and the reason for that decision will be received within five working days. You may be asked to put your concern/complaint in writing.

Step Two: At this point, or any time, you may talk with the Human Resources Director for the facility. He/she will assist you in resolving any continuing disagreement, guide you in offering suggestions and do his/her best to help you resolve the disagreement.

Step Three: You may appeal the decision of the department director by appealing in writing to your administrator. The administrator may contact you to discuss the matter in person. You will receive a written reply in 10 working days.

4. Corporate Compliance

United Methodist Homes has a longstanding reputation for lawful and ethical behavior, a reputation, which you and your fellow employees have earned for the organization over the years. This is more than a source of pride for us; it is one of our greatest assets. Each employee of United Methodist Homes is expected to continue to adhere to the high standard of honesty whenever he or she acts on behalf of United Methodist Homes, whether in dealing with other employees, residents and their families, with vendors, government regulators or the general public. Violations of the legal or ethical requirements jeopardize the welfare of United Methodist Homes, its employees and residents, and the community it serves.

United Methodist Homes operates on a code of ethics and business conduct that is supplemented by a more detailed compliance program and the policies and procedures

pertaining to each specific area. All employees are expected to uphold these legal and ethical principles without exception. Additional information about corporate compliance and privacy requirements can be found in the Code of Conduct. If you have any questions about how our principles, standards or policies apply, seek answers from your campus compliance liaison, the compliance officer or other appropriate individuals within the institution. Further information about corporate compliance can also be found on the compliance card attached with your employee ID badge.

5. Resident Abuse

United Methodist Homes will not tolerate any occurrence of resident abuse, neglect, mistreatment or the misappropriation of resident property by any individual. Any occurrence will be reported to and investigated by United Methodist Homes and the proper authorities, according to regulations. Employees will receive ongoing training which will include recognizing, preventing and reporting resident abuse.

Any such occurrences will result in disciplinary action up to and including termination.

6. Confidentiality of Information

Any Protected Health Information or other personal information including, but not limited to, information regarding physical, mental or clinical conditions, prescriptions, treatment, or payment program, and other personal affairs or information of residents, customers, members of United Methodist Homes' employees and their families, such as Social Security or financial account numbers ("confidential personal information") is the property of United Methodist Homes, strictly confidential and is to be discussed only during the authorized, professional conduct of business and within all applicable state and federal regulations, including, but not limited to the Health Insurance Portability and Accountability Act (HIPAA) of 1996 or HITECH Act, if applicable, and United Methodist Homes' information privacy and security program.

United Methodist Homes' employees are responsible for protecting the privacy and security of confidential Protected Health Information (in any form including oral, written or electronic) that is obtained, handled, learned, heard or viewed in the course of their work or association with United Methodist Homes in accordance with its information privacy and security program. Participation in and compliance with our information privacy and security program is a condition of employment. Failure to comply with the information privacy and security program may subject the employee to disciplinary action up to and including termination of employment or relationship with United Methodist Homes.

Use or disclosure of confidential protected health information is acceptable only in the discharge of one's responsibilities or duties (including reporting duties imposed by legislation), based on the need to know and if it is consistent with our information privacy and security program. Discussion regarding confidential protected health information should not take place in the presence of persons not entitled to such information or in public places (i.e., elevators, lobbies, cafeterias, off premises, etc.).

Employees who have access to confidential protected health information may be required to execute a confidentiality statement as a condition of employment.

All employees who become aware of a possible breach of the privacy, security or confidentiality of confidential personal health information are required to immediately notify United Methodist Homes' Compliance Officer through one of the organization's established mechanisms. This notification may be done anonymously. No adverse action will be taken against the employee who makes such a report in good faith and is not involved in the practice at issue. The Compliance Hotline is available at 1-800-646-9066.

Employees are strictly prohibited from discussing with any person outside United Methodist Homes any situation or incident that has occurred at United Methodist Homes. A designated spokesperson for the organization in any situation will communicate with outside visitors, police, public officials or media. This policy does not prohibit employees from discussing their wages or terms and conditions of employment.

7. Violence in the Workplace Policy

United Methodist Homes will not tolerate workplace violence. This policy is designed to protect employee and resident emotional and physical safety and health. Employees, residents, family members, visitors, volunteers, vendors and all other persons except appropriate law enforcement personnel are strictly forbidden from bringing any type of weapon onto facility property. This includes weapons in automobiles or other vehicles on facility property or in facility parking lots and/or areas or any other manner of possessing or controlling weapons of any kind, such as rifles, guns, knives, stars, bats, mace, pepper spray, etc. Assaults, threats, whether verbal or physical, directed toward or perpetrated on residents, employees, family members, visitors, volunteers, vendors or any other person are forbidden.

All employees are required to report any violation of this policy to management. Management reserves the right to contact the appropriate authorities if there is reasonable belief that an employee has brought a weapon onto facility property. All incidents in violation of this policy will be reviewed for appropriate action by administration.

8. Solicitation and Distribution or Posting of Literature

It is the policy of United Methodist Homes to maintain a safe and non-solicitous environment for our residents, visitors, and employees.

Each facility operated by United Methodist Homes is considered the home of the residents occupying such facility and it is the intent of United Methodist Homes to reduce disruption in the lives of our residents, to provide quiet, and to increase the safety and well-being of residents by maintaining a non-solicitation environment in all immediate resident care areas of each facility.

An employee is prohibited from soliciting another employee while either person doing the soliciting or the person being solicited is on working time. Working time is defined as times when the employee being solicited and the employee doing the soliciting are expected to be performing work functions.

Employees are also prohibited from distributing, at any time, advertising materials, handbills or any other kind of printed or written literature in working areas of the premises of United Methodist Homes.

In addition to the above, employees are also prohibited at any time from engaging in solicitation or distribution in immediate resident care areas, such as resident rooms, treatment rooms, or other areas where residents receive care or treatment.

No literature unrelated to United Methodist Homes' business shall be posted in any area of the facility without approval of The Executive Director and Vice-President, Human Resources.

The solicitation and/or distribution of any literature or written materials on premises owned or operated by United Methodist Homes by non-employees are prohibited at all times.

In addition, employees are prohibited from using United Methodist Homes' email system to solicit support for any outside group or organization, unless the group or organization has United Methodist Homes corporate support for a particular event.

No outside vendors (those who do not provide services to United Methodist Homes) shall be permitted on any premises owned by United Methodist Homes.

9. Tips, Gifts, Gratuities and Resident Solicitation

You may not accept any tip or gratuity from residents and you may not receive individual gifts from residents. You may not give gifts to residents unless part of the campus gift program managed by the activities department. Sometimes even a well-intended gift can cross the line. Any gift that creates a sense of obligation, coercion or that a resident may view as a condition of compromise is always inappropriate

You may not borrow money from nor lend money to residents; nor may you engage with residents in the purchase or sale of any item. No employee may accept any gift from a resident under a will or trust instrument except in those cases where they are related by blood or marriage.

Employees may not serve as a resident's executor, trustee, administrator, or guardian or provide financial services or act under a power of attorney for a resident except in those cases where they are related by blood or marriage unless otherwise allowed by state law.

10. Computer Use Policy

United Methodist Homes offers employees access to the organization's computer network and the Internet, as necessary for work-related purposes. This policy applies to all employees granted such access. For United Methodist Homes to continue making network and Internet access available, employees must use these electronic systems appropriately and lawfully. Access to these systems at United Methodist Homes is controlled through individual accounts and passwords. Employees must not divulge their passwords to any other person, and must not allow any other person access to their accounts. New employees will be granted network and Internet access upon acceptance of their account information and upon the signing of the

acknowledgement of this policy. If you have any questions about the provisions of this policy, you should contact United Methodist Homes' Support.

Each employee is responsible for the content of all text, audio, or electronic images that they place or send over the company's computer, electronic device, email or Internet systems. No email or other electronic communications may be sent that hides the identity of the sender or represents the sender as someone else or someone from another company. All messages communicated on the company's email and Internet system should contain the employee's name and business contact information.

Any message or information sent by an employee to another individual outside of the company via United Methodist Homes' electronic network system (e.g. - a bulletin board, online service, or Internet) are statements that reflect on the company. Therefore, we require that all communications sent by employees via the company's computer, electronic device, email or Internet systems -- whether inside or outside the company's walls -- comply with all company policies and not disclose any confidential or proprietary company information, as set forth in the Confidentiality of Information policy located in the employee handbook.

The company provides Internet and email access for business usage. Every staff member has the responsibility to maintain and enhance the company's public image and to use company email and access to the Internet in a responsible and productive manner that reflects well on the company. The company recognizes that there will be occasional personal use on lunch breaks and during non-working hours (with the approval of management), but this shall not be excessive. Excessive personal use of the computer, electronic device, Internet and email systems will result in disciplinary action, up to and including termination of employment.

All employees who use United Methodist Homes' computer, electronic device, email or Internet systems must adhere to United Methodist Homes' Anti-Harassment Policy, which is set forth in the employee handbook. The company computer, electronic device, email and Internet systems may not be used for transmitting, viewing, retrieving or storing of any communications that may be considered by management to be discriminatory, harassing or inappropriate in a professional workplace setting. Harassment of any kind is prohibited. No messages with derogatory or inflammatory remarks about an individual's race, color, creed, sex, age, sexual orientation, national origin, marital status, disability or veteran status are permitted. No abusive, profane or offensive language is to be transmitted through the company's computer, electronic device, email or Internet systems. Electronic media may also not be used for any purpose that is illegal or against company policy or contrary to the company's best interests. Solicitation of non-company business, or any use of the company computer, electronic device, email or Internet systems for personal gain, is prohibited. Do not reveal personal information of a patient/resident, another person or yourself. Do not send electronic chain letters. Do not send email copies to nonessential readers.

On a "need to know" basis, United Methodist Homes' employees may have access to confidential information about United Methodist Homes and residents. With the approval of management, employees may use email to communicate confidential information internally to those with a need to know. The Confidentiality of Information policy as set forth in the employee handbook must be followed. Such email must be marked "Confidential." When in doubt whether

information is considered confidential, consult with your manager before using email to communicate the information. When a matter is personal, it may be more appropriate to send a hard copy, place a phone call or meet in person.

Each employee's workstation should be configured to prevent access to confidential information by anyone else, and the workstation must be secured by logging off if the employee leaves the area.

In order to prevent computer viruses from being transmitted through the company's computer, electronic device, email and Internet systems; there shall be no unauthorized down-loading of any software. Employees should not download software themselves -- you must contact United Methodist Homes Support for assistance in the event that you need software downloaded, and United Methodist Homes Support will instruct you as to how to proceed. Only company-authorized software, data, desktop backgrounds or screensavers will be allowed on United Methodist Homes' computers and electronic hand-held devices.

Employees on the company's computer, electronic device, email or Internet systems may not transmit copyrighted materials belonging to entities other than this company. All employees obtaining access to other companies' or individuals materials must respect all copyrights and may not copy, retrieve, modify, or forward copyrighted materials, except with permission. Employees must observe all copyright and license agreements. If you have questions about these legal issues, please email United Methodist Homes Support.

Computer network and Internet access is provided as a tool for our organization's business. United Methodist Homes reserves the right -- at any time -- to monitor, inspect, copy, review, and store any and all usage of the network and the Internet, as well as any and all materials, files, information, software, communications and other content transmitted, received or stored in connection with this usage. This could include removal of inappropriate material. All such information, content, and files are the property of United Methodist Homes. This includes individual accounts and passwords. You should have no expectation of privacy regarding them or regarding the use of the computer, electronic device, internet or email systems. Network administrators may review files and monitor communications for any reason, including but not limited to maintaining system integrity and overseeing that employees are using the system consistent with this policy.

United Methodist Homes has in place both firewalls and anti-virus software. We routinely "block" websites that we deem inappropriate for various business reasons. In addition, the company routinely monitors patterns in its email and Internet communications. The reasons for this monitoring are many, including cost analysis, bandwidth, security and the general management of the company's gateway to the Internet. Popular sites like streaming radio are banned because of their bandwidth. It is necessary that United Methodist Homes has proper, legal use of its computer, email and Internet systems, and that there is no abuse or excessive use of these systems for personal use. In addition, as noted above, all messages created, sent or retrieved over the company's computer, electronic device, email or Internet systems is the property of United Methodist Homes and should not be considered an employee's private information. United Methodist Homes reserves the right to access and monitor the content of all messages and files on our email system, along with the monitoring of time spent and web-sites

visited by United Methodist Homes' employees within our Internet system. This monitoring may be done at any time, with or without notice. Employees should not assume electronic communications are totally private and should transmit highly-confidential data in other ways.

Any employee who abuses the privilege of company-facilitated access to United Methodist Homes' computer, electronic device, email or Internet systems will be subject to corrective action up to and including termination. If deemed appropriate, the company also reserves the right to advise appropriate legal officials of any suspected illegal violations.

11. Social Network Media Policy

United Methodist Homes recognizes the growing importance of social media as a communication tool. This policy addresses employees' use of such networks including: personal websites, web logs (blogs), wikis, social networks, online forums, virtual worlds and any other kind of social media. United Methodist Homes respects the right of employees to use these media during their personal time. However, excessive or inappropriate use of these media during company time is prohibited unless the use is for company business.

United Methodist Homes takes no position on employees' decision to use social media networks. In general, employees who participate in social media are free to publish personal information without censorship by United Methodist Homes. This guide is not intended to interfere with employees' rights under the National Labor Relations Act including the right to discuss wages and hours and working conditions with coworkers and others while not at work. Subject to that proviso, Employees must avoid posting information that could harm United Methodist Homes. Please use the guidelines set forth below.

All employees are responsible for maintaining the company's positive reputation and under no circumstances should employees present the company to the public in a manner that diminishes its standing within the community. Employees are responsible for presenting the company in a manner that safeguards their own and the organization's positive reputation.

If an employee chooses to identify him or herself as a United Methodist Homes employee on any social media network, he or she must adhere to the following:

- Employees should state in clear terms that the views expressed on any social media network are the employee's alone and that they do not necessarily reflect the views of United Methodist Homes.
- Employees are prohibited from disclosing information on any social media network that is protected under HIPAA or is proprietary to United Methodist Homes, or to a third party that has disclosed information to the company. This may include information about or identifying other employees in a negative way, incidents that occur at United Methodist Homes or information that may be valuable to a competitor, including specific service information or pricing.
- Employees are prohibited from displaying the United Methodist Homes logo by itself on any social media network without permission from United Methodist Homes. Also, they should not post images of co-workers without the co-workers' consent. Employees are

prohibited from posting any private images of United Methodist Homes' staff, residents or their family members, or Homes' premises and property.

- If you post photos of yourself wearing your badge, uniform or clothing bearing the United Methodist Homes name or logo, please think carefully about whether the image represents United Methodist Homes ....in a manner that is respectful, fair and courteous to fellow employees, residents or people who work on behalf of United Methodist Homes.
- Employees are prohibited from making statements about United Methodist Homes, their coworkers, our residents, competitors, agents or partners that could be considered harassing, threatening, libelous or defamatory in any way.
- Employees are prohibited from acting as spokespeople for United Methodist Homes or posting comments as a representative of the company.
- Employees are prohibited from sharing any communication that constitutes harassment or sexual harassment, in violation of United Methodist Homes' policies remarks that would contribute to a hostile work environment (racial, sexual, religious, etc.), or any behavior not in compliance with this Employee Handbook, United Methodist Homes' Code of Conduct or general corporate policies.
- Employees are expected to represent themselves professionally both on and off duty.
- Employees should not use work email addresses to register for social networking sites, blogs, gaming sites, etc.

Employees who participate in social media may still decide to include information about their work at United Methodist Homes as part of their personal profile as it would relate to a typical social conversation. This may include:

- Work information included in a personal profile, to include company name, job title, and job duties.
- Status updates regarding an employee's own job promotion.
- Personal participation in United Methodist Homes-sponsored events, including volunteer activities.

An employee who is responsible for a social media posting that fails to comply with the guidelines set forth in this policy or that otherwise causes harm to United Methodist Homes may be subject to discipline up to and including termination. Employees will be held responsible for the disclosure, whether purposeful or inadvertent, of confidential or proprietary company information that violates the privacy (HIPAA) rights or other rights of a third party or the content of anything posted on any social media. Violations of residents' rights under HIPAA will be dealt with in accordance with policy 1039 HIPAA Sanctions and form 1039a Sanction Guideline. Further, employees may be liable for monetary damages for such disclosure. United Methodist Homes will not support you if a civil or criminal action is taken against you if you post protected health information.

Anything posted on an employee's website or blog or other internet content for which the employee is responsible will be subject to all United Methodist Homes' polices, rules, regulations and guidelines. United Methodist Homes is free to view and monitor publicly-available employee websites or blogs at any time without consent or previous approval.

Finally, employees should contact the Director of Marketing and Public Relations if they encounter incorrect information about United Methodist Homes online. Employees should not attempt to correct any such incorrect information that appears online.

12. Telephone Calls

The primary purpose of the telephones at United Methodist Homes' facilities is for business and emergency use. In the event of incoming calls, the employee will be called to the phone only if it is an emergency. Ordinarily a message will be taken for the employee to return the call at a later time. Inappropriate, unauthorized or excessive use of the telephone will result in disciplinary action.

13. Cell Phones/Mobile Devices

It is the policy of United Methodist Homes to limit employee use of personal mobile devices on United Methodist Homes' property.

For the purpose of this Policy the term mobile device is defined as any handled electronic device with the ability to receive and/or transmit voice, text, or data messages without a cable connection; including but not limited to, cell phones, smartwatches, digital wireless phones, laptops and iPads. Accessories for these devices are also prohibited; including but not limited to, ear buds and headphones. Employees are prohibited from using mobile devices to place or receive phone calls and/or text messages while in the process of completing their daily work assignments. Furthermore, due to concerns related to resident security, privacy and dignity, employees are strictly prohibited from taking any photographs or images of residents, medical equipment, property or facilities (with the exception of photos of equipment to assist vendors and potential OSHA safety hazards). In the event an employee needs to utilize his/her mobile device for personal reasons, time can be set aside during his/her designated breaks/meal period to do so. Mobile device usage will not be allowed in resident areas.

Individuals with UMH cell phones are permitted to use them for business reasons throughout UMH property.

Personal cell phones may be used for business purposes if authorized by the Executive Director. Protected Health Information should never by shared on a personal cell phone.

Personal cell phones are permitted to use for scheduling and in-services without prior authorization.

Failure to comply with this policy will result in disciplinary action.

14. Identification Badges

You will receive a facility issued identification badge (ID badge) that must be worn and visible at all times while in the facility. ID badges are the property of United Methodist Homes and may not be defaced. Lost ID badges must be reported to the Human Resources Department immediately.

15. Personal Appearance Policy

The personal appearances of our employees enhance the professional and productive image of our company.

Maintaining a professional appearance is important to the success of United Methodist Homes. The image United Methodist Homes projects must demonstrate that it is the most professional, productive, thorough and reliable provider of service in its chosen markets. Appearance is a major element of United Methodist Homes' image. It is the policy of United Methodist Homes that an employee's dress and grooming should be appropriate to the employee's work situation.

1) Employees are expected to dress in a manner consistent with their job responsibilities.

2) Employees are expected to follow individual departmental dress codes as instructed by their supervisors.

3) Employees reporting to work improperly dressed may be sent home by their supervisor to change clothing or until further scheduled for work. Employees will not be compensated for this time away from work, in accordance with applicable law. Violations of this policy may also result in disciplinary action.

The following helps illustrate appropriate personal appearance:

1) Employee's hair and clothing should be clean and well maintained.

2) Facial hair should be clean and trimmed.

3) Employee's clothing should be loose fitting and appropriately cover their body. All clothing must be clean, neat, and fit properly

4) Dresses, skirts, shorts (when approved) etc. should be no more than 3 inches above the knee.

5) Appropriate and comfortable footwear should be worn. Sandals are permitted in office setting areas. Flip flops are not permitted.

The following helps illustrate inappropriate personal appearance and are not permitted:

- Jewelry that may cause harm or injury to you or the residents.
- Large graphic design apparel.

- Halter tops, strapless tops, spaghetti straps, cropped tops, t-shirts with offensive wording, clothing that shows undergarments (sheer), torn clothing, clothing with holes in it, or sleeveless and other types of shirts that do not cover the shoulders. This includes all types of tank tops, muscle shirts, cami, and tube tops.
- Tops exposing the midriff.
- Excessively tight-fitting articles of clothing.
- Sweat pants, yoga pants, and similar types of pants.

United Methodist Homes permits employees to wear jewelry/piercings or to display tattoos at the workplace within the following guidelines. Factors that management will consider to determine whether jewelry/piercings or tattoos may pose a conflict with the employee's job or work environment include: personal safety of self, residents, or others; offensiveness to co-workers, residents, families, or others in the workplace based on racial, sexual, religious, ethnic, or other characteristics or attributes of a sensitive or legally protected nature; or coworker, resident, and/or family member complaints.

If management determines an employee's jewelry or tattoos may present such a conflict, the employee will be encouraged to identify appropriate options, such as removal of excess, unsafe, or offensive jewelry, covering of tattoos, or other reasonable means to resolve the conflict.

An environment of mutual cooperation, respect, and fair and consistent treatment for all employees is the United Methodist Homes goal. Nonetheless, United Methodist Homes is legally responsible for ensuring that no employees are subject to harassment or a hostile work environment. As an initial step toward resolution of any complaint or offense under this policy, supervisors and managers will be responsible for explaining the policy and answering employee questions. If an agreeable solution cannot be reached at that stage the human resources manager will follow United Methodist Homes procedures to resolve the issue.

Nothing in this policy is intended to interfere with an employee's right to maintain their natural hair texture or a protective hairstyle including braids, locks and twists.

United Methodist Homes reserves the right in all situations to decide whether any employee is in violation of this policy.

16. Drug and Alcohol Policy

It is the policy of United Methodist Homes to help provide a safe and drug-free work environment for our residents and employees. The use, possession, transfer, distribution or manufacture or being under the influence of alcohol, illegal drugs, controlled substances, unauthorized drugs, intoxicants, drug paraphernalia, or any combination thereof on any United Methodist Homes property or facility or during work time is prohibited. In order to protect employees and residents, drug and alcohol testing will be utilized. Refusal to submit to a drug and alcohol test will be grounds for termination. Testing positive for a drug that is illegal under

Federal or State law or for alcohol will result in disciplinary action, up to and including termination.

All information relating to drug and alcohol testing will be kept strictly confidential. The information will be kept in the employee's medical file, if any, which will be maintained separately from the employee's personnel file. These medical files will be kept locked and secured and access and/or knowledge of test results will be limited to certain individuals in the company on a need-to-know basis. In the event of a post-accident or injury drug test, the results may be shared with representatives and agents of our worker's compensation insurance carrier.

Drug and Alcohol Testing: United Methodist Homes will arrange for drug and alcohol testing to be conducted under any of the following circumstances:

- **Pre-Employment/Post-Job Offer** – All offers of employment will be made contingent upon the applicant successfully passing a pre-employment/post-job offer drug screen as part of his/her pre-employment physical. Human Resources will schedule the pre-employment/post-job offer test as part of the applicant's pre-employment physical. Human Resources will receive the results of such tests and will only inform the hiring manager whether or not the employee is eligible for hire based on the information received. Human Resources will not share the actual test results.

- **Post-Accident** – Any employee involved in an on-the-job accident or injury may be required to submit to a drug and alcohol (breathalyzer) test under **reasonable suspicion/cause testing**.

- **Reasonable Suspicion/Cause**: United Methodist Homes may ask an employee to submit to a drug and alcohol test at any time it believes that the employee may be under the influence of drugs or alcohol, including, but not limited to, the following circumstances: evidence of drugs or alcohol on or about the employee's person or in the employee's vicinity, unusual conduct on the employee's part that suggests impairment or the influence of drugs or alcohol.

- Employees or applicants who are tested and show the presence of prescription medication in their system will be required to provide a valid prescription or written authorization from the prescriber to verify the employee's use of such drug.

Self-Disclosure/Employee Assistance Program:

While United Methodist Homes does not condone the abuse of alcohol, prescription drugs and/or the use of illegal drugs, it does recognize that addiction to drugs and alcohol can be treated. If an employee recognizes a personal addiction or abuse problem and seeks assistance from management in advance of detection and/or an accident or injury, the organization will assist the employee in seeking treatment and will not consider this prior self-

disclosure a violation of the policy as long as the employee agrees to seek treatment. The confidential nature of the employee's counseling and rehabilitation for drug and/or alcohol abuse will be preserved.

The Employee Assistance Program (EAP) is a confidential resource designed to assist employees and their eligible dependents in dealing with challenges and problems including substance abuse. For more information on United Methodist Homes' Employee Assistance Program, please refer to the information posted throughout the facility or see the Human Resources Department for additional information.

H. SAFETY AND SECURITY

1. Safety

We expect all employees to cooperate in helping to prevent injury to themselves, other employees, residents, and visitors. You should stay well informed on current fire and disaster plans and safety procedures. It is mandatory to attend a fire safety in-service on an annual basis, and to participate in all fire drills as required.

We ask all employees to watch for and report hazards or unsafe practices to a supervisor or department director immediately.

United Methodist Homes is responsible for providing a safe work environment for you and your fellow employees. To protect you from blood-borne diseases, United Methodist Homes' responsibilities include the following:

- Provide you with orientation, continuing education and training.
- Provide the equipment and supplies necessary to minimize your risk of infection with a blood-borne pathogen.
- Monitor your adherence to protective measures.

2. Security

The key is to speak up. We recognize that our daily work gives us each the opportunity to see problems before they become apparent to others. It is all of our responsibility to pay attention to activity occurring in our work areas that may be a risk or harm to residents, employees, volunteers, or other personnel.

Suspicious activities and threatening behaviors need to be reported to management; reportable activities and behaviors include:

- Individuals in work areas, including computer stations without ID badges, and who do not look familiar
- Individuals in resident areas that do not look familiar and cannot identify when asked who they are visiting

- Individuals requesting resident information without proper authorization
- Verbal threats or harm to self or others
- Any act that might be a crime
- Acts of physical violence

If there is an imminent threat to the safety of others for example: bomb threat, terroristic threat, active shooter, use of weapons, or any other credible threat of violence, our emergency codes/procedures should be implemented.

3. OSHA Regulations

The Federal Occupational Safety and Health Administration (OSHA) provide guidelines for a safe work environment by eliminating unsafe working conditions. OSHA regulations must be followed by all employees.

4. Personal Property

United Methodist Homes cannot be responsible for personal property that is lost, damaged or stolen on a United Methodist Homes campus.

I. INFORMATION TECHNOLOGY (IT) COMPLIANCE

1. COMPUTER, INTERNET AND EMAIL USE

The goals of this policy are to outline appropriate use of UMH's internet resources, including the use of browsers to access web-sites, electronic mail, file uploads and downloads, in order that UMH set proper control over employee productivity, inappropriate content, exposure of proprietary information, and privacy concerns. It is UMH's intention that internet use by our employees will comply with all Federal and State laws. Use of these services is subject to the following conditions:

United Methodist Homes offers employees access to the organization's computer network and the internet, as necessary for work-related purposes. This policy applies to all employees granted such access. For UMH to continue making network and internet access available, employees must use these electronic systems appropriately and lawfully. Access to these systems at UMH is controlled through individual accounts and passwords. Employees must not divulge their passwords to any other person, and must not allow any other person access to their accounts. New employees will be granted network and Internet access upon acceptance of their account information and upon the signing of the acknowledgement of this policy. If you have any questions about the provisions of this policy, you should contact UMH Support.

Each employee is responsible for the content of all text, audio, or electronic images that they place or send over the company's computer, email or internet systems. No email or other

electronic communications may be sent that hides the identity of the sender or represents the sender as someone else or someone from another company. All messages communicated on the company's email and internet system should contain the employee's name and business contact information.

Any message or information sent by an employee to another individual outside of the company via UMH's electronic network system (e.g. - a bulletin board, online service, or internet) are statements that reflect on the company. Therefore, we require that all communications sent by employees via the company's computer, email or internet systems - whether inside or outside the company's walls - comply with all company policies and not disclose any confidential or proprietary company information, as set forth in the Confidentiality of Information policy located in the Employee Handbook.

The company provides internet and email access for business usage. Every staff member has the responsibility to maintain and enhance the company's public image and to use company email and access to the internet in a responsible and productive manner that reflects well on the company. The company recognizes that there will be occasional personal use on lunch breaks and during non-working hours (with the approval of management), but this shall not be excessive. Excessive personal use of the computer, internet and email systems will result in disciplinary action, up to and including termination of employment.

All employees who use UMH's computer, email or internet systems must adhere to the UMH Anti-Harassment Policy, which is set forth in the Employee Handbook. The company computer, email and internet systems may not be used for transmitting, viewing, retrieving or storing of any communications that may be considered by management to be discriminatory, harassing or inappropriate in a professional workplace setting. Harassment of any kind is prohibited. No messages with derogatory or inflammatory remarks about an individual's race, color, creed, sex, age, sexual orientation, national origin, marital status, disability, or veteran status are permitted. No abusive, profane, or offensive language is to be transmitted through the company's computer, email or internet systems. Electronic media may also not be used for any purpose that is illegal or against company policy or contrary to the company's best interests. Solicitation of non-company business, or any use of the company computer, email or internet systems for personal gain, is prohibited. Do not reveal personal information of a patient/resident, another person or yourself. Do not send electronic chain letters. Do not send email copies to nonessential readers.

On a "need to know" basis, UMH employees may have access to confidential information about UMH and residents. With the approval of management, employees may use email to communicate confidential information internally to those with a need to know. The Confidentiality of Information Policy as set forth in the Employee Handbook must be followed. Such email must be marked "Confidential." When in doubt whether information is considered confidential, consult with your manager, before using email to communicate the information. When a matter is personal, it may be more appropriate to send a hard copy, place a phone call, or meet in person.

Each employee's workstation should be configured to prevent access to confidential information by anyone else, and the workstation must be secured by logging off if the employee leaves the area.

In order to prevent computer viruses from being transmitted through the company's computer, email and internet systems; there shall be no unauthorized down-loading of any software. Employees should not download software themselves - you must contact UMH support for assistance in the event that you need software downloaded, and UMH support will instruct you as how to proceed. Only company-authorized software, data, desktop backgrounds or screensavers will be allowed on UMH computers and electronic hand-held devices.

Employees on the company's computer, email or internet systems may not transmit copyrighted materials belonging to entities other than this company. All employees obtaining access to other companies' or individuals materials must respect all copyrights and may not copy, retrieve, modify, or forward copyrighted materials, except with permission. Employees must observe all copyright and license agreements. If you have questions about these legal issues, please email UMH Support.

Computer network and internet access is provided as a tool for our organization's business. UMH reserves the right - at any time - to monitor, inspect, copy, review, and store any and all usage of the network and the internet, as well as any and all materials, files, information, software, communications, and other content transmitted, received, or stored in connection with this usage. This could include removal of inappropriate material. All such information, content, and files are the property of UMH. This includes individual accounts and passwords. You should have no expectation of privacy regarding them or regarding the use of the computer, internet, or email systems. Network administrators may review files and monitor communications for any reason, including but not limited to maintaining system integrity and overseeing that employees are using the system consistent with this policy.

UMH has in place both firewalls and anti-virus software. We routinely "block" web-sites that we deem inappropriate for various business reasons. In addition, the company routinely monitors patterns in its email and internet communications. The reasons for this monitoring are many, including cost analysis, bandwidth, security, and the general management of the company's gateway to the internet. Popular sites like streaming radio are banned because of their bandwidth. It is necessary that UMH has proper, legal use of its computer, email and internet systems, and that there is no abuse or excessive use of these systems for personal use. In addition, as noted above, all messages created, sent or retrieved over the company's computer, email or internet systems is the property of UMH and should not be considered an employee's private information. UMH reserves the right to access and monitor the content of all messages and files on our email system, along with the monitoring of time spent and web-sites visited by UMH employees within our internet system. This monitoring may be done at any time, with or without notice. Employees should not assume electronic communications are totally private and should transmit highly confidential data in other ways.

Any employee who abuses the privilege of company facilitated access to the UMH computer, email or internet systems will be subject to corrective action up to and including termination. If

deemed appropriate, the company also reserves the right to advise appropriate legal officials of any suspected illegal violations.

2. Encryption and Decryption

It is the policy of the United Methodist Homes Management Services Corporation and its Affiliated Entities (UMH) to implement a mechanism to encrypt and decrypt electronic protected health information (ePHI).

Encryption is a method of converting an original message of regular text into encoded text. UMH uses encryption in its Wide Area Network (WAN). All data in motion is encrypted in the WAN. Generally data at rest is not encrypted, but is controlled through the use of a unique user name and password. The password must include upper and lower case, special character and at least 1 number. The only time that data at rest is encrypted is on laptops with full disk encryption. UMH utilizes many different processes to protect data such as:

- Firewalls
- Encryption software
- Filtering software
- Adherence to server configuration standards
- Adoption and use of change control procedures
- User authorization procedures
- Workforce training

3. Security Awareness & Training

It is the policy of United Methodist Homes Management Services Corporation and its Affiliated Entities (UMH), to train all employees and certain contracted personnel on the Security policies and procedures in effect at UMH.

Periodically training may take the form of topics at monthly meetings, focused reminders in affected areas, as well as formal trainings. The topics may include how malicious software affects the Homes' computer system, what contracted staff and employees' responsibilities are to prevent this from happening, what UMH is doing to prevent this from happening, log-in monitoring and password management.

Procedure for Annual Training of Employed Staff:

- All employees will review the IT policy at orientation. Which includes Computer, Internet and E-mail use as well as Encryption and Decryption.
- All existing staff will be trained on an annual basis regarding PHI and ePHI through the yearly schedule developed through the Compliance Office and the In-service Departments of the facilities.
- All new staff will be trained utilizing the same media developed for the In-service department for orientation training.
- The type, length and date of training, and the specific employees that received the training must be documented.

Procedure for Contracted Personnel, Including PRN (As Needed) Personnel:

- Certain contracted personnel including PRN (as needed) personnel will be trained on the Security policies and procedures employed at UMH. The training will include the obtaining of certain Security policies and procedures, verification of the receipt of these documents, and written verification that these individuals acknowledge receipt of these documents.
- Periodically, the VP of Clinical Services in conjunction with the Compliance Officer will review the software applications in use to determine what level of training and what software applications are in use by these individuals.
- UMH realizes that contracted employees are employed at various affiliated entities continually or sporadically throughout the calendar year. It will be a requirement that the various scheduling coordinators or department manager to notify the Information Technology department (IT) or the Clinical Services (CS) department that access is requested to various software applications.
- IT or CS will approve access and make the necessary changes to allow access.
- The manager of the area where the contracted personnel works is responsible for the authorized or unauthorized access to UMH systems.
- When determined that the individual meets all the internal requirements for access to the UMH software, access will be granted. This individual will be asked to verify in writing that they understand UMH Security policies and procedures, the confidentiality necessary to protect PHI and ePHI and they are responsible for all approved and unapproved access to the various systems.
- A copy of the written verification will be forwarded to the education department for compliance with this policy.

Applied to all: As part of the periodic training the Compliance Officer and VPIT will address issues of periodic security updates, malware and review the password management policy.